

PROSPECTUS DATED 5 SEPTEMBER 2025



SCOR SE

€500,000,000 Fixed to Floating Rate Subordinated Notes due September 2055 Issue Price: 100 per cent.

The €500,000,000 Fixed to Floating Rate Subordinated Notes due September 2055 (the “Notes”) of SCOR SE (the “Issuer” or “SCOR”) will be issued on 10 September 2025 (the “Issue Date”) in the denomination of €100,000 each. The Notes constitute direct, unconditional, unsecured and ordinarily subordinated obligations of the Issuer, as further specified in “Terms and Conditions of the Notes – Status of the Notes”.

This prospectus constitutes a prospectus (the “Prospectus”) for the purposes of Article 6.3 of Regulation (EU) 2017/1129, as amended (the “Prospectus Regulation”). This Prospectus contains information relating to the issue by SCOR of the Notes.

Each Note will bear interest on its outstanding Principal Amount (i) at a fixed rate of 4.522 per cent. *per annum* from (and including) the Issue Date to (but excluding) 10 September 2035 (the “Reset Date”) and (ii) at a floating rate of 3-month EURIBOR plus the Margin from (and including) the Reset Date to (but excluding) the Redemption Date, as further specified in “Terms and Conditions of the Notes – Interest”.

The fixed rate interest will be payable annually in arrear on 10 September each year, commencing on 10 September 2026 and the floating rate interest will be payable quarterly in arrear on or nearest to 10 March, 10 June, 10 September and 10 December in each year commencing on 10 December 2035.

Unless previously redeemed or purchased and cancelled in accordance with the terms and conditions of the Notes, the Notes will be redeemed at their Principal Amount (i.e. €100,000 per Note) together with accrued interest thereon, if any, and any Arrears of Interest, if any, on or nearest to 10 September 2055 if the Conditions to Redemption, Purchase and Replacement are satisfied or, otherwise as soon as the Conditions to Redemption, Purchase and Replacement are satisfied as further specified in “Terms and Conditions of the Notes – Redemption and Purchase”.

The Issuer shall have the right (subject, in particular, to the Prior Approval of the Relevant Supervisory Authority and provided the Conditions to Redemption, Purchase and Replacement are satisfied) to redeem the Notes, in whole but not in part (i) at any time during the period from (and including) 10 March 2035 (the “First Call Date”) to (and including) the Reset Date or (ii) on any Interest Payment Date thereafter as further specified in “Terms and Conditions of the Notes – Redemption and Purchase”. In addition, the Issuer may (subject, in particular, to the Prior Approval of the Relevant Supervisory Authority and provided the Conditions to Redemption, Purchase and Replacement are satisfied) redeem the Notes at any time on the occurrence of certain events affecting the withholding tax or deductibility treatment of the Notes or following a Rating Event, a Capital Disqualification Event, an Accounting Event or if the conditions for a Clean-up Call are satisfied, as set out in “Terms and Conditions of the Notes – Redemption and Purchase – Conditions to Redemption, Purchase and Replacement”.

Payment of interest on the Notes shall, in certain circumstances, be deferred, as set out in “Terms and Conditions of the Notes – Interest – Interest Deferral”.

The Notes do not contain events of default or a negative pledge.

This Prospectus has been approved as a prospectus by the *Commission de Surveillance du Secteur Financier* (the “CSSF”), as competent authority under the Luxembourg Law of 16 July 2019 (the “Prospectus Law 2019”) implementing the Prospectus Regulation. The CSSF only approves this Prospectus as meeting the standards of completeness, comprehensibility and consistency imposed by the Prospectus Regulation. Approval by the CSSF should not be considered as an endorsement of the Issuer or of the quality of the Notes. By approving this Prospectus, in accordance with Article 6(4) of the Prospectus Law 2019, the CSSF does not engage in the economic or financial opportunity of the operations contemplated by this Prospectus or the quality and solvency of the Issuer. Investors should make their own assessment as to the suitability of investing in the Notes. Application has also been made to the Luxembourg Stock Exchange for the Notes to be admitted to trading on the Luxembourg Stock Exchange’s regulated market and to be listed on the Official List of the Luxembourg Stock Exchange. The Luxembourg Stock Exchange’s regulated market is a regulated market for the purposes of the Markets in Financial Instrument Directive 2014/65/EU (“MiFID II”).

This Prospectus will be valid for a year from 5 September 2025, i.e., until 5 September 2026. In the event of significant new factors, material mistakes or material inaccuracies, the obligation of the Issuer to supplement the Prospectus will apply only until the Notes are admitted to trading on the Luxembourg Stock Exchange’s regulated market, pursuant to Article 12(1) of the Prospectus Regulation.

The Notes will be issued in dematerialised bearer form (*au porteur*). Title to the Notes will be evidenced in accordance with Article L.211-3 *et seq.* of the French *Code monétaire et financier* by book-entries (*inscription en compte*) in the books of Account Holders. No physical document of title (including *certificats représentatifs* pursuant to Article R.211-7 of the French *Code monétaire et financier*) will be issued in respect of the Notes. The Notes will, upon issue, be inscribed in the books of Euroclear France, which shall credit the accounts of the Account Holders, as set out in “Terms and Conditions of the Notes – Denomination, Form and Title of the Notes”.

The Notes have not been and will not be registered under the U.S. Securities Act of 1933, as amended (the “Securities Act”) or under any securities law of any state or other jurisdiction of the United States and may not be offered or sold within the United States or to U.S. persons (as defined in Regulation S under the Securities Act) except in transactions exempt from or not subject to the registration requirements of the Securities Act and in compliance with any applicable state securities laws. Accordingly, the Issuer is offering the Notes only to non-U.S. persons outside the United States in offshore transactions within the meaning of and in reliance upon Regulation S under the Securities Act (“Regulation S”).

The Notes have been rated A- by S&P Global Ratings Europe Limited (“S&P”). As at the date of this Prospectus, S&P is established in the European Union and is registered under the Regulation (EC) No. 1060/2009 of the European Parliament and of the Council dated 16 September 2009, on credit rating agencies, as amended by Regulation (EU) No. 513/2011 (the “CRA Regulation”). As such, S&P is included in the list of credit rating agencies published by the European Securities and Markets Authority (ESMA) on its website (at <https://www.esma.europa.eu/supervision/credit-rating-agencies/risk>) in accordance with the CRA Regulation. According to the S&P definitions, obligations rated ‘A’ are more susceptible to the adverse effects of changes in circumstances and economic conditions than obligations in higher-rated categories. However, the Issuer’s capacity to meet its financial commitments on such obligations is still strong. The

minus (-) sign shows relative standing within the rating category. A credit rating is not a recommendation to buy, sell or hold securities and may be suspended, revised or withdrawn by the rating agency at any time without notice.

This Prospectus and all documents incorporated by reference in this Prospectus are available (i) on the website of the Luxembourg Stock Exchange (www.luxse.com) and (ii) on the website of the Issuer (www.scor.com).

An investment in the Notes involves certain risks. Potential investors should review all the information contained or incorporated by reference in this document and, in particular, the information set out in the section entitled “Risk Factors” before making a decision to invest in the Notes.

Structuring Advisors and Global Coordinators

BNP PARIBAS

Crédit Agricole CIB

Joint Bookrunners and Joint Lead Managers

BNP PARIBAS

Citigroup

Crédit Agricole CIB

Morgan Stanley

Natixis

IMPORTANT CONSIDERATIONS

Certain information contained in this Prospectus and/or documents incorporated herein by reference has been extracted from sources specified in the sections where such information appears. The Issuer confirms that such information has been accurately reproduced and that, so far as it is aware and is able to ascertain from information published by the above sources, no facts have been omitted which would render the information reproduced inaccurate or misleading. The Issuer has also identified the source(s) of such information.

Other than in relation to the documents which are deemed to be incorporated by reference (see “Documents Incorporated by Reference”), the information on the websites to which this Prospectus refers does not form part of the Prospectus and has not been scrutinised nor approved by the CSSF.

References to the “**Group**”, unless otherwise specified in the section entitled “Terms and Conditions of the Notes”, are to the Issuer together with its consolidated subsidiaries taken as a whole.

This Prospectus is to be read and construed in conjunction with any supplement that may be published between the date of this Prospectus and the date falling twelve months after the approval of this Prospectus, and all documents which are incorporated herein by reference (see the section entitled “Documents Incorporated by Reference”). This Prospectus shall be read and construed on the basis that such documents are incorporated in, and form part of, this Prospectus.

The Joint Bookrunners and Joint Lead Managers (referred to on the cover page are referred to in this Prospectus as the “**Joint Lead Managers**”) have not independently verified the information contained herein. Accordingly, no representation, warranty or undertaking, express or implied, is made and no responsibility or liability is accepted by the Joint Lead Managers as to the accuracy or completeness of any of the information contained or incorporated by reference in this Prospectus or any other information provided by the Issuer in connection with the issue and sale of the Notes.

This Prospectus constitutes a prospectus for the purpose of Article 6 of the Prospectus Regulation, in respect of, and for the purposes of, giving information with regard to, the Issuer, the Group and the Notes which, according to the particular nature of the Issuer and the Notes, is necessary to enable investors to make an informed assessment of the assets and liabilities, financial position, profit and losses and prospects of the Issuer and the Group, the rights attaching to the Notes and the reason for the issuance and its impact on the Issuer.

In connection with the issue and sale of the Notes, no person is or has been authorised by the Issuer or the Joint Lead Managers to give any information or to make any representation not contained in or not consistent with this Prospectus and if given or made, such information or representation must not be relied upon as having been authorised by the Issuer or the Joint Lead Managers.

Neither the delivery of this Prospectus nor the offering, sale or delivery of any Notes shall in any circumstances imply that the information contained herein concerning the Issuer is correct at any time subsequent to the date hereof or that there has been no change in the affairs of the Issuer or those of the Group since the date hereof or the date upon which this Prospectus has been most recently supplemented or that there has been no adverse change in the financial position of the Issuer or that of the Group since the date hereof or the date upon which this Prospectus has been most recently supplemented or that any other information supplied in connection with the issue and sale of the Notes is correct as of any time subsequent to the date indicated in the document containing the same.

Neither this Prospectus nor any other information supplied in connection with the issue and sale of the Notes (a) is intended to provide the basis of any credit or other evaluation or (b) should be considered as a recommendation by the Issuer or the Joint Lead Managers that any recipient of this Prospectus or any other information supplied in connection with the issue and sale of the Notes should purchase any Notes. Neither this Prospectus nor any other information supplied in connection with the issue and sale of the Notes constitutes an offer or invitation by or on behalf of the Issuer or the Joint Lead Managers to any person to subscribe for or to purchase any Notes. This Prospectus may only be used for the purpose for which it has been published.

In making an investment decision regarding the Notes, prospective investors should rely on their own independent investigation and appraisal of (a) the Issuer, the Group, their business, their financial condition and affairs and (b) the terms of the offering, including the merits and risks involved. The content of this Prospectus is not to be construed as legal, business or tax advice. Each prospective investor should consult its own advisers as to legal, tax, financial, credit and related aspects of an investment in the Notes and the suitability of investing in the Notes in light of its particular circumstances.

The Joint Lead Managers do not undertake to review the financial condition or affairs of the Issuer or the Group after the date of this Prospectus or to advise any investor or potential investor in the Notes of any information coming to the attention of the Joint Lead Managers. Potential investors should, in particular, read carefully the section entitled “Risk Factors” set out below and the documents incorporated by reference into this Prospectus before making a decision to invest in the Notes.

Each potential investor in the Notes must determine the suitability of that investment in light of its own circumstances. In particular, each potential investor should:

- (a) have sufficient knowledge and experience to make a meaningful evaluation of the Notes, the merits and risks of investing in the Notes and the information contained or incorporated by reference in this Prospectus or any applicable supplement;*
- (b) have access to, and knowledge of, appropriate analytical tools to evaluate, in the context of its particular financial and other situation, an investment in the Notes and the impact the Notes will have on its overall investment portfolio;*
- (c) have sufficient financial resources and liquidity to bear all of the risks of an investment in the Notes, including where the currency for principal or interest payments is different from the potential Investor’s Currency (as defined herein);*
- (d) understand thoroughly the terms of the Notes and be familiar with the behaviour of any relevant indices and financial markets and with the regulatory framework applicable to the Issuer; and*
- (e) be able to evaluate (either alone or with the help of a financial adviser) possible scenarios for economic, interest rate and other factors that may affect its investment and its ability to bear the applicable risks.*

The investment activities of certain investors are subject to legal investment laws and regulations, or review or regulation by certain authorities. Each potential investor should consult its legal advisers to determine whether and to what extent (i) the Notes are legal investments for it, (ii) the Notes can be used as collateral for various types of borrowing and (iii) other restrictions apply to its purchase or pledge of any of the Notes. Financial institutions should consult their legal advisors or the appropriate regulators to determine the appropriate treatment of the Notes under any applicable risk-based capital or similar rules.

The Notes are complex financial instruments and are not a suitable or appropriate investment for all investors, especially retail investors. In some jurisdictions, regulatory authorities have adopted or published laws, regulations or guidance with respect to the offer or sale of certain securities with characteristics similar to the Notes.

Sophisticated institutional investors generally purchase complex financial instruments as part of a wider financial structure rather than as stand alone investments. They purchase complex financial instruments as a way to reduce risk or enhance yield with a measured and appropriate addition of risk to their overall portfolios, and only after performing intensive analysis of all involved risks. A potential investor should not invest in Notes - which are complex financial instruments - unless it has the expertise (either alone or with a financial adviser) to evaluate how the Notes will perform under changing conditions, the resulting effects on the value of the Notes and the impact this investment will have on the potential investor's overall investment portfolio.

Interest Payments with respect to the Notes, or profits realised by the Noteholder upon the disposal or repayment of the Notes, may be subject to taxation or documentary charges or duties in accordance with the laws and practices of the jurisdiction where the Notes are transferred or in other jurisdictions. In some jurisdictions, no official statements of the tax authorities or court decisions may be available for financial instruments such as the Notes. Potential investors are advised to ask for their own tax adviser's advice on their individual taxation with respect to the acquisition, holding, disposal and redemption of the Notes. Only these advisers are in a position to duly consider the specific situation of each potential investor.

The distribution of this Prospectus and the offering or sale of the Notes in certain jurisdictions may be restricted by law. Persons into whose possession this Prospectus comes are required by the Issuer and the Joint Lead Managers to inform themselves about and to observe any such restriction. The Notes have not been and will not be registered under the Securities Act of 1933, as amended (the **Securities Act**) or with any securities regulatory authority of any state or other jurisdiction of the United States. Notes may not be offered or sold within the United States or to, or for the account or benefit of, U.S. persons, as defined in Regulation S under the Securities Act (the **"Regulation S"**), except pursuant to an exemption from, or in a transaction not subject to, the registration requirements of the Securities Act. For a description of certain restrictions on offers and sales of Notes and on distribution of this Prospectus, see "Subscription and Sale".

EU MiFID II product governance / Professional investors and ECPs only target market - Solely for the purposes of each manufacturer's product approval process, the target market assessment in respect of the Notes, taking into account the five categories referred to in item 19 of the Guidelines published by the European Securities and Markets Authority (**"ESMA"**) on 3 August 2023, has led to the conclusion that: (i) the target market for the Notes is eligible counterparties and professional clients only, each as defined in Directive 2014/65/EU (as amended, **"MiFID II"**); and (ii) all channels for distribution of the Notes to eligible counterparties and professional clients are appropriate. Any person subsequently offering, selling or recommending the Notes (a **"distributor"**) should take into consideration the manufacturers' target market assessment; however, a distributor subject to MiFID II is responsible for undertaking its own target market assessment in respect of the Notes (by either adopting or refining the manufacturers' target market assessment) and determining appropriate distribution channels.

UK MIFIR product governance / Professional investors and ECPs only target market - Solely for the purposes of the manufacturer's product approval process, the target market assessment in respect of the Notes has led to the conclusion that: (i) the target market for the Notes is only eligible counterparties, as defined in the FCA Handbook Conduct of Business Sourcebook (**"COBS"**), and professional clients, as defined in Regulation (EU) No 600/2014 as it forms part of UK domestic law by virtue of the European Union (Withdrawal) Act 2018 (**"UK MiFIR"**); and (ii) all channels for distribution of the Notes to eligible counterparties and professional clients are appropriate. Any person subsequently offering, selling or recommending the Notes (a **"distributor"**) should take into consideration the manufacturer's target market assessment; however, a distributor subject to the FCA Handbook Product Intervention and Product Governance Sourcebook (the **"UK MiFIR Product Governance Rules"**) is responsible for undertaking its own target market assessment in respect of the Notes (by either adopting or refining the manufacturers' target market assessment) and determining appropriate distribution channels.

IMPORTANT – PRIIPs Regulation / Prohibition of sales to EEA retail investors - The Notes are not intended to be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor in the European Economic Area (**"EEA"**). For these purposes, a retail investor means a person who is one (or both) of: (i) a retail client as defined in point (11) of Article 4(1) of MiFID II; or (ii) a customer within the meaning of Directive 2016/97/EU as amended, where that customer would not qualify as a professional client as defined in point (10) of Article 4(1) of MiFID II. Consequently, no key information document required by Regulation (EU) No 1286/2014 (as amended, the **"PRIIPs Regulation"**) for offering or selling the Notes or otherwise making them available to retail investors in the EEA has been prepared and therefore offering or selling the Notes or

otherwise making them available to any retail investor in the EEA may be unlawful under the PRIIPs Regulation.

IMPORTANT – UK PRIIPs Regulation / Prohibition of sales to UK retail investors – The Notes are not intended to be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor in the United Kingdom (“UK”). For these purposes, a retail investor means a person who is one (or both) of: (i) a retail client, as defined in point (8) of Article 2 of Regulation (EU) No 2017/565 as it forms part of UK domestic law by virtue of the European Union (Withdrawal) Act 2018 (“EUWA”); or (ii) a customer within the meaning of the provisions of the Financial Services and Markets Act 2000 (“FSMA”) and any rules or regulations made under the FSMA to implement Directive (EU) 2016/97, where that customer would not qualify as a professional client, as defined in point (8) of Article 2(1) of Regulation (EU) No 600/2014 as it forms part of UK domestic law by virtue of the EUWA. Consequently, no key information document required by Regulation (EU) No 1286/2014 as it forms part of UK domestic law by virtue of the EUWA (the “UK PRIIPs Regulation”) for offering or selling the Notes or otherwise making them available to retail investors in the UK has been prepared and therefore offering or selling the Notes or otherwise making them available to any retail investor in the UK may be unlawful under the UK PRIIPs Regulation.

This Prospectus does not constitute an offer to sell or the solicitation of an offer to buy any Notes in any jurisdiction to any person to whom it is unlawful to make the offer or solicitation in such jurisdiction. The distribution of this Prospectus and the offer or sale of Notes may be restricted by law in certain jurisdictions. The Issuer and the Joint Lead Managers do not represent that this Prospectus may be lawfully distributed, or that any Notes may be lawfully offered, in compliance with any applicable registration or other requirements in any such jurisdiction, or pursuant to an exemption available thereunder, or assume any responsibility for facilitating any such distribution or offering. In particular, no action has been taken by the Issuer or the Joint Lead Managers which would permit a non-exempt offer of any Notes or distribution of this Prospectus in any jurisdiction where action for that purpose is required. Accordingly, no Notes may be offered or sold, directly or indirectly, and none of this Prospectus, any advertisement or other offering material may be distributed or published in any jurisdiction, except under circumstances that will result in compliance with any applicable laws and regulations. Persons into whose possession this Prospectus or any Notes may come must inform themselves about, and observe, any such restrictions on the distribution of this Prospectus and the offering and sale of Notes. In particular, there are restrictions on the distribution of this Prospectus and the offer or sale of Notes in the United States, the United Kingdom, European Economic Area and Singapore; see the section entitled “Subscription and Sale”.

This Prospectus is being provided for informational use solely in connection with the consideration of a purchase of the Notes to qualified purchasers in offshore transactions complying with Rule 903 or Rule 904 of Regulation S under the U.S. Securities Act. Its use for any other purpose is not authorised. This Prospectus may not be copied or reproduced in whole or in part, nor may it be distributed or any of its contents be disclosed to anyone other than the prospective investors to whom it is being provided.

In this Prospectus, unless otherwise specified or the context otherwise requires, references to “€”, “Euro”, “EUR” or “euro” are to the single currency of the participating member states of the European Economic and Monetary Union which was introduced on 1 January 1999.

In connection with the issue of the Notes, Crédit Agricole Corporate and Investment Bank (herein referred to as the “**Stabilising Manager**”, (or persons acting on behalf of the Stabilising Manager), may over-allot or effect transactions with a view to supporting the market price of the Notes at a level higher than that which might otherwise prevail but in doing so the Stabilising Manager shall act as principal and not as agent of the Issuer. However, stabilisation may not necessarily occur. Any stabilisation action may begin on or after the date on which adequate public disclosure of the final terms of the offer of the Notes is made and, if begun, may cease at any time, but it must end no later than the earlier of thirty (30) calendar days after the issue date of the Notes and sixty (60) calendar days after the date of the allotment of the Notes. Any stabilisation action or over-allotment must be conducted by the Stabilising Manager (or person(s) acting on its behalf) in accordance with all applicable laws and rules.

PRESENTATION OF CERTAIN FINANCIAL INFORMATION

CERTAIN NON-IFRS MEASURES

The Group's audited consolidated financial statements for the years ended 31 December 2023 and 31 December 2024 and the Group's unaudited interim condensed consolidated financial statements as at 30 June 2025 are prepared in accordance with International Financial Reporting Standards ("IFRS"), as endorsed by the European Union and published in Euro.

The Group uses certain non-IFRS measures throughout the Prospectus in addition to the financial performance measures prepared under IFRS. A non-IFRS financial measure is defined as one that measures historical or future financial performance, financial position or cash flows but which excludes or includes amounts that would not be so adjusted in the most comparable IFRS measure. These non-IFRS measures include Attritional Loss and Commission Ratio, Combined Ratio, Economic Value, Estimated Gross Premium Income (EGPI), Gross Written Premiums, Leverage Ratio, Management Expenses Ratio, Natural Catastrophe Ratio, Net Combined Ratio, New Business CSM (Contractual Service Margin), Regular Income Yield, Return on Equity (ROE), Return on Invested Assets (ROIA) and Total Invested Assets.

Non-IFRS measures should not be considered in isolation from, or in substitute for, financial information presented in compliance with IFRS. Non-IFRS measures as reported by the Group may not be comparable to similarly titled amounts reported by other companies. The non-IFRS measures discussed in the Prospectus are used in the internal management of the Group, along with the most directly comparable IFRS financial measures, in evaluating operating performance, financial position and cash flows. The non-IFRS measures are not audited. The Group's management believes that these non-IFRS measures, when considered in conjunction with IFRS measures, accurately reflect the Group's economic performance and enhance investors' and management's overall understanding of the Group's performance.

For further details on reconciliation with the IFRS data, see pages 29 to 32 and 36 to 37 of the 2024 URD and pages 49 to 53 and 54 of the 2025 Interim Financial Report.

FORWARD-LOOKING STATEMENTS

Certain statements contained herein are forward-looking statements including, but not limited to, statements that are predictions of or indicate future events, trends, business strategies, expansion and growth of operations plans or objectives, competitive advantage and regulatory changes, based on certain assumptions and include any statement that does not directly relate to a historical fact or current fact. The Issuer and the Group may also make forward-looking statements in its audited annual financial statements, in its interim financial statements, in its prospectuses, in press releases and other written materials and in oral statements made by its officers, directors or employees to third parties. Forward-looking statements are typically identified by words or phrases such as, without limitation, “anticipate”, “assume”, “believe”, “continue”, “estimate”, “expect”, “foresee”, “intend”, “may increase” and “may fluctuate” and similar expressions or by future or conditional verbs such as, without limitation, “will”, “should”, “would” and “could”. Undue reliance should not be placed on such statements, because, by their nature, they are subject to known and unknown risks, uncertainties, and other factors and actual results may differ materially from any future results, performance or achievements expressed or implied by such forward-looking statements. Please refer to the section entitled “*Risk Factors*” below and its risks factors section set forth on pages 123 to 151 of the 2024 URD and pages 15 to 16 of the 2025 Interim Financial Report.

SCOR operates in a continually changing environment and new risks emerge continually. Forward-looking statements speak only as of the date they are made and SCOR does not undertake any obligation to update or revise any of these forward-looking statements, to reflect new information, future events or circumstances or otherwise. These forward-looking statements do not constitute profit forecasts or estimates under the Commission Delegated Regulation (EU) 2019/980 supplementing the Prospectus Regulation.

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PERSONS RESPONSIBLE FOR THE INFORMATION GIVEN IN THE PROSPECTUS

To the best knowledge of the Issuer, the information contained in this Prospectus is in accordance with the facts and contains no omission likely to affect its import. The opinions and intentions expressed in this Prospectus with regard to the Issuer are honestly held. The Issuer accepts responsibility for the information contained in this Prospectus.

RISK FACTORS

The Notes are being offered to professional investors only and are not suitable for retail investors. Investors should not purchase the Notes in the primary or secondary markets unless they are professional investors. Investing in the Notes involve risks.

Prior to making an investment decision, prospective investors in the Notes offered hereby should consider carefully, among other things and in light of their financial circumstances and investment objectives, all the information of this Prospectus (including information incorporated by reference herein) and, in particular, the risks factors set forth below and those on pages 123 to 151 of the 2024 URD and on pages 15 to 16 of the 2025 Interim Financial Report incorporated herein by reference. The Issuer believes that the following factors may affect its ability to fulfil its obligations under the Notes and may be material for the purpose of assessing the market risks associated with Notes. All of these factors are contingencies which may or may not occur.

Factors which the Issuer believes are specific to the Issuer and/or the Notes and material for an informed investment decision with respect to investing in the Notes are also described below.

The Issuer believes that the factors described below and those on pages 123 to 151 of the 2024 URD and on pages 15 to 16 of the 2025 Interim Financial Report incorporated herein by reference represent the principal risks inherent in investing in the Notes, but this section is not intended to be exhaustive and the inability of the Issuer to pay interest, principal or other amounts on or in connection with any Notes may be caused by events the occurrence of which, in the view of the Issuer, is so unlikely that they should not be considered significant risks based on information currently available to the Issuer or which it may not currently be able to anticipate.

Prospective investors should make their own independent evaluation of all risk factors contained in this section.

In each category below the Issuer sets out the most material risk factors in a manner that is consistent with the assessment of their materiality based on the expected magnitude of their negative impact and the probability of their occurrence.

Words and expressions defined in the section entitled “Terms and Conditions of the Notes” herein shall have the same meanings in this section.

RISK FACTORS RELATING TO THE ISSUER AND THE GROUP

Risk factors relating to the Issuer and the Group are set out in detail on pages 123 to 151 of the 2024 URD and pages 15 to 16 of the 2025 Interim Financial Report which are incorporated by reference in this Prospectus.

Categories	Risk factors described within each category	2024 URD pages on which the risk can be found	2025 Interim Financial Report pages on which the risk can be found
Strategic risks	Business strategy risks	126	
	External environment risks	126-129	15-16
	Liquidity and funding risks	129-132	
	Reputation risks	132	
	Sustainability risks	133-134	

	Diversification and concentration risks	134-135	
P&C and L&H risks	P&C risks	135-138	
	L&H risks	138-140	
	Risks related to reserves	140-141	
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Market risks	Interest rate risks	143	
	Currency risks	144	
	Credit spread risks	145	
	Inflation risks	145	
	Equity risks	145	
	Real estate risks	146	
	Monitoring of sensitivity to market risks	146	
Credit risks	Management of credit risks	148	
	Aging of assets	149	
Operational risks	Risks related to systems or facilities	149	
	Risks related to staff	149	
	Risks related to processes and third parties	150	
	Legal and regulatory risks in SCOR's operating environment	150	
	Risks related to external fraud	150	
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	Management of operational risks	151	

RISK FACTORS RELATING TO THE NOTES

Capitalised expressions used below have the meaning ascribed to them in the Terms and Conditions of the Notes.

The following paragraphs describe the risk factors that the Issuer believes to be material to the Notes to be issued in order to assess the risks associated with the Notes. Therefore, they do not describe all potential risks of an investment in the Notes.

1. RISKS FOR THE NOTEHOLDERS AS CREDITORS OF THE ISSUER

The Notes are ordinarily subordinated obligations of the Issuer and may be subject to change in certain circumstances

The obligations of the Issuer under the Notes in respect of principal and interest (including any outstanding Arrears of Interest) constitute direct, unconditional, unsecured and Ordinarily Subordinated Obligations of the Issuer and the Notes rank and will rank *pari passu* without any preference among themselves and with other Ordinarily Subordinated Obligations of the Issuer. Subject to applicable law, in the event of the voluntary or judicial liquidation (*liquidation amiable* or *liquidation judiciaire*) of the Issuer, bankruptcy proceedings or any other similar proceedings affecting the Issuer or if the Issuer is liquidated for any other reason, the rights of Noteholders to payment under the Notes shall rank, in accordance with Article L.228-97 of the French *Code de commerce*, junior in priority of payment to Senior Subordinated Obligations and Unsubordinated Obligations (all as defined in Condition 3 (*Status of the Notes*)) and senior in priority of payment to holders of *titres participatifs*, *prêts participatifs*, Deeply Subordinated Obligations, Equity Securities, or any other obligation expressed to rank junior to the Notes.

In the event of incomplete payment of creditors ranking senior to holders of the Notes (in the context of voluntary or judicial liquidation (*liquidation amiable* or *liquidation judiciaire*) of the Issuer, bankruptcy proceedings or any other similar proceedings affecting the Issuer), the obligations of the Issuer in connection with the Notes and related interest will be terminated. The holders of the Notes shall take all steps necessary for the orderly accomplishment of any insolvency proceedings or voluntary liquidation.

Thus, the Noteholders face a significantly higher performance risk than holders of unsubordinated or less subordinated obligations of the Issuer and could then lose all or some of their investment if the Issuer becomes insolvent.

There is a risk that Noteholders will lose the entire amount of their investment, regardless of whether the Issuer has sufficient assets available to settle what would have been the claims of Noteholders or of securities subordinated to the same or greater extent as the Notes, in winding-up proceedings or otherwise.

In addition, if the Notes are no longer treated as Tier 2 Own Funds, their ranking will, subject to certain conditions, change, and the Notes will become either Senior Notes, 1st Ranking Senior Subordinated Obligations or Senior Subordinated Obligations (the “**New Ranking**”), depending on a number of factors, all as further described in Condition 3 (*Statuts of the Notes*). Although the New Ranking is in all cases senior to the initial ranking of the Notes, the New Ranking may still be subordinated. As a result, the obligations of the Issuer under the Notes may remain subject to the prior repayment in full of creditors whose claims rank senior to those of the holders of Notes under the New Ranking.

French Insolvency Law

As a *société européenne* incorporated in France and having its “centre of main interests” (as construed under Regulation (EU) 2015/848, as amended) located in France, French insolvency laws could apply to the Issuer. Under French insolvency laws, in the case of the opening in France of an accelerated safeguard procedure (*procédure de sauvegarde accélérée*) or a safeguard procedure (*procédure de sauvegarde*) or a judicial reorganisation procedure (*procédure de redressement judiciaire*) or a judicial liquidation procedure (*procédure de liquidation judiciaire*) in respect of the Issuer, creditors of the Issuer (including Noteholders) must file their proof of claims with the creditors’ representative or liquidator, as the case may be, within two months (or within four months in the case of creditors domiciled outside metropolitan France) of the publication of the opening judgment of the procedure in the BODACC (*Bulletin officiel des annonces civiles et commerciales*).

As part of a safeguard procedure or a judicial reorganisation procedure, the affected parties (ie. creditors and equity holders whose rights are affected by the proposed restructuring plan) may be grouped into classes of affected parties reflecting sufficient commonality of economic interest based on objective verifiable criteria (the establishment of creditor classes is not mandatory under certain thresholds (see below) applicable to the debtor company and its subsidiaries). As part of an accelerated safeguard procedure, the establishment of affected parties’ classes would however be mandatory.

The allocation of affected parties among classes is carried out by the court-appointed judicial administrator. In this context and should they be directly affected by the proposed restructuring plan, Noteholders would therefore be members of a class of affected parties (the “**Relevant Class of Affected Parties**”) (although it cannot be excluded that the Noteholders are divided into more relevant classes of affected parties based on objective and ascertainable criteria), potentially along with other affected parties.

In addition, the receiver (*administrateur judiciaire*) is required to comply with subordination agreements (which should include any subordination provision contained in the Terms and Conditions of the Notes) when allocating affected parties into classes. The receiver must disclose the method of allocation of affected parties into classes and the computation of voting rights thereof and the interested Holder may dispute the same before the relevant procedure’s supervisory judge (*juge commissaire*).

The Relevant Class of Affected Parties will deliberate on the draft safeguard plan (*projet de plan de sauvegarde*), the draft accelerated safeguard plan (*projet de plan de sauvegarde accélérée*) or the draft judicial reorganisation plan (*projet de plan de redressement*), as applicable, and may further agree to:

- increase the liabilities (*charges*) of the relevant affected parties (including the Noteholders) by rescheduling due payments and/or partially or totally writing off claims;
- a differentiated treatment between affected parties as appropriate under the circumstances; and/or
- convert debt claims (including the Notes) into shares or securities that give or may give right to share capital.

The Relevant Class of Affected Parties would vote on the proposed plan at a two-third majority (calculated as a proportion of the relevant claims or rights held by affected parties of the Relevant Class of Affected Parties expressing a vote). In this case, the provisions applicable to

the Relevant Class of Affected Parties deliberations shall prevail over the provisions relating to the meetings of the Noteholders described in Condition 12 (*Noteholders' Meetings*).

However, a restructuring plan may also be adopted despite the negative vote of the Relevant Class of Affected Parties on the proposed plan through the court-imposed cross-class cram-down mechanism.

In order for the court to impose a cross-class cram-down, various conditions must be met, including the following conditions:

- (i) the debtor has consented to the cross-class cram-down if the plan has been submitted as part of an accelerated safeguard procedure or a safeguard procedure. As part of a reorganisation procedure any affected party is entitled to request the application of the cross-class cram-down mechanism;
- (ii) the plan has been approved by a majority of classes (provided that at least one of those classes is a class of secured creditors or a class ranking senior to the class of ordinary unsecured creditors) or, failing that, by at least one class (other than a class of equity holders or any other class which is “out of the money”);
- (iii) the “best interests of creditors” test is complied with (according to which any affected party which has voted against the plan should not be in a less favourable situation than it would have been in the event of a judicial liquidation, a disposal plan or a better alternative solution);
- (iv) the “absolute priority rule” is complied with (according to which the claims of a dissenting class must be fully discharged (by identical or equivalent means) when a junior class is entitled to a payment or retain an interest under the plan). The court may, however, waive this rule under certain conditions;
- (v) affected parties benefit from an equal treatment and are treated in proportion to their claim or right;
- (vi) no class of affected parties is entitled under the plan to receive or retain more than the full amount of their claims or interest; and
- (vii) provided that new financings are necessary to the restructuring plan, these would not entail excessive harm to the interests of the affected parties.

In a judicial reorganisation procedure, in the absence of the adoption of a plan through the classes' mechanism, creditors would be consulted individually on a plan proposal. As part of this individual consultation, the court has the possibility to impose a debt term out on dissenting creditors (including a Noteholder), which may be up to 10 years.

For the avoidance of doubt, the provisions relating to the meetings of the Noteholders described in Condition 12 (*Noteholders' Meetings*) will not be applicable to the extent they are not in compliance with compulsory insolvency law provisions that apply in these circumstances. The procedures, as described above or as these may be amended, could have an adverse impact on Noteholders seeking repayment in the event that the Issuer was to be subject to French insolvency procedures.

The preventive and insolvency procedures in France are regulated by the provisions of the French *Code de commerce* as amended by ordinance n°2021-1193 dated 15 September 2021 and its implementation decree n°2021-1218 dated 23 September 2021, which is transposing

Directive (EU) 2019/1023 dated 20 June 2019. Neither the scope of the Directive (EU) 2019/1023 nor the scope of the ordinance cover insurance and reinsurance undertakings, unless the *Autorité de Contrôle Prudentiel et de Résolution* (the “ACPR”) chooses to make them applicable. The application of French insolvency law to an insurance and reinsurance company such as the Issuer is subject to the prior permission of the ACPR. However, these provisions would govern the common rights, interests and representation of the Noteholders in this context. As a result, Noteholders would generally have limited ability to influence the opening or the outcome of an accelerated safeguard (*procédure de sauvegarde accélérée*), a safeguard (*procédure de sauvegarde*) or a judicial reorganisation procedure (*procédure de redressement judiciaire*) of the Issuer in France and this limitation will affect the ability of the Noteholders to recover their investments in the Notes.

The commencement of preventive or insolvency procedures against the Issuer may have a material adverse effect on the market value of Notes issued by the Issuer. Any decisions taken by the Relevant Class of Affected Parties or a class of creditor, as the case may be, could substantially impact the Noteholders and even cause them to lose all or part of their investment, should they not be able to recover amounts due to them from the Issuer.

Modification of the Terms and Conditions of the Notes

Noteholders will be grouped automatically for the defence of their common interests in a *Masse*, as defined in Condition 12 (*Noteholders’ Meetings*), and collective decisions of Noteholders can be made. The Terms and Conditions of the Notes permit in certain cases defined majorities to bind all Noteholders including Noteholders who did not participate and vote at the relevant collective decision and Noteholders who voted in a manner contrary to the majority.

The *Masse* of Noteholders may, subject to Condition 12 (*Noteholders’ Meeting*), deliberate on any proposal relating to the modification of the Terms and Conditions of the Notes. If a decision were adopted by a majority of Noteholders and such modifications were to impair or limit the rights of the Noteholders, this might have a negative impact on the market value of the Notes.

2. RISKS RELATING TO THE STRUCTURE OF THE NOTES

There are no events of default under the Notes

The Terms and Conditions of the Notes do not provide for events of default allowing acceleration of the Notes if certain events occur. Accordingly, if the Issuer fails to meet or perform any obligations under the Notes, including the payment of any interest, investors will not have the right of acceleration of principal or interest. Upon a payment default, the sole remedy available to Noteholders for recovery of amounts owing in respect of any payment of principal or interest on the Notes will be the institution of proceedings to enforce such payment. Therefore, payment of principal and interest (including any outstanding Arrears of Interest) on the Notes shall be accelerated only if a judgment is issued for the judicial liquidation (*liquidation judiciaire*) of the Issuer or if the Issuer is liquidated for any other reason. In addition, there is no right to require the Issuer to redeem the Notes. Notwithstanding the foregoing, the Issuer will not, by virtue of the institution of any such proceedings, be obliged to pay any sum or sums sooner than the same would otherwise have been payable by it.

Due to the intended classification of the Notes as “Tier 2 Own Funds”, Noteholders benefit from less protection compared to holders of more senior bonds in the event the Issuer is in default of any payment obligations under the Notes. The absence of events of default materially weakens the position of Noteholders compared to other creditors (including holders of senior bonds) of the Issuer and may notably result in delay in receiving the amounts due and payable under the Notes.

Interest rate risks

As provided in Condition 4 (*Interest*), from (and including) the Issue Date to (but excluding) the Reset Date, the Notes will bear interest at a Fixed Rate of Interest (4.522 per cent. *per annum*) payable annually. As a result of the Notes bearing interest at a fixed rate during such period, investment in the Notes involves the risk that subsequent changes in market interest rates may adversely affect the market value of the Notes. While the nominal interest rate of the Notes is fixed, the current interest rate on the capital markets (“**market interest rate**”) typically changes on a daily basis. As the market interest rate changes, the price of such note changes in the opposite direction. If the market interest rate increases, the price of such note typically falls, until the yield of such note is approximately equal to the market interest rate. If the market interest rate decreases, the price of a fixed rate note typically increases, until the yield of such note is approximately equal to the market interest rate. Movements of the market interest rate can adversely affect the price of the Notes and can lead to losses for the Noteholders if they sell Notes during the period in which the market interest rate exceeds the Fixed Rate of Interest of the Notes. It is difficult to anticipate future market volatility in interest rates, but any such volatility may have an adverse effect on the value of the Notes.

From (and including) the Reset Date to (but excluding) the Redemption Date, the Notes will bear interest at a floating rate, being the Reference Rate (3-month EURIBOR) plus the Margin.

The Margin will not change throughout the Floating Interest Periods but the Floating Rate of Interest will be quarterly adjusted by the Reference Rate (3-month EURIBOR) which will change in accordance with market conditions. Accordingly, the market value of the Notes may be volatile if changes, especially short-term changes, to market interest rates can only be reflected in the Floating Rate of Interest of the Notes upon the next periodic adjustment of the Reference Rate. Due to varying interest income, investors are not able to determine a definite yield to maturity of the Notes at the time they purchase them, so that their return on investment cannot be compared with that of investments having pre-determined fixed interest up to maturity. Noteholders are exposed to reinvestment risk if market interest rates decline. That is, Noteholders may reinvest the interest income paid to them only at the relevant lower interest rates then prevailing. In addition, if the Issuer subsequently issues fixed rate notes this may affect the market value and the secondary market (if any) of the Notes during any period when interest is not fixed (and vice versa).

Regulation and reform of “benchmarks” may adversely affect the market value of the Notes

As provided in Condition 4 (*Interest*), from (and including) the Reset Date to (but excluding) the Redemption Date, the Notes shall bear interest on their principal amount at a floating rate interest which shall be equal to the 3-month EURIBOR plus the Margin.

EURIBOR (*Euro Interbank Offered Rate*) constitutes a benchmark for the purposes of Regulation (EU) 2016/1011, as amended (the “**Benchmarks Regulation**”).

Interest rates and indices which are deemed to be “benchmarks” have been, and continue to be, the subject of national and international regulatory guidance and proposals for reform. Some of these reforms are already effective whilst others are still to be implemented. These reforms may cause EURIBOR to perform differently than in the past, to disappear entirely, to be subject to revised calculation methods, or have other consequences which cannot be predicted. Any such consequence could have a material adverse effect on the liquidity and market value of and return on any Notes linked to such “benchmark”.

The Benchmarks Regulation applies to the provision of benchmarks, the contribution of input data to a benchmark and the use of a benchmark, within the EU. In addition, among other things,

it (i) requires benchmark administrators to be authorised or registered and to comply with extensive requirements in relation to the administration of “benchmarks” and (ii) prevents certain uses by EU supervised entities of “benchmarks” provided by administrators that are not authorised/registered.

The Benchmarks Regulation could have a material impact on the Notes, including that the methodology or other terms of the “benchmark” could be changed in order to comply with the requirements of the Benchmarks Regulation. Such changes could, among other things, have the effect of reducing or increasing the rate or level or otherwise affecting the volatility of the published rate or level of EURIBOR and, as a consequence, Noteholders could lose part of their investment.

More broadly, any of the international, national or other proposals for reform, or the general increased regulatory scrutiny of “benchmarks”, could increase the costs and risks of administering or otherwise participating in the setting of a “benchmark” and complying with any such regulations or requirements.

Such factors may have the following effects on certain “benchmarks” (such as EURIBOR): (i) discouraging market participants from continuing to administer or contribute to such “benchmark”; (ii) triggering changes in the rules or methodologies used in the “benchmarks” or (iii) leading to the disappearance of the “benchmark”. Any of the above changes or any other consequential changes as a result of international, national or other proposals for reform or other initiatives or investigations, could have a material adverse effect on the liquidity and the market value of and return on the Notes.

The Benchmarks Regulation was amended by Regulation (EU) 2021/168 of 10 February 2021, which notably introduced a harmonised approach to deal with the cessation or wind-down of certain benchmarks (such as EURIBOR) by conferring on the European Commission or competent national authorities the power to designate a statutory replacement for certain benchmarks, resulting in such benchmarks being replaced in contracts and financial instruments that have not been renegotiated before the date of cessation of the relevant benchmarks and contain either no contractual replacement (or so-called “fallback provision”) or a fallback provision which is deemed unsuitable by the European Commission or competent national authorities. There are still uncertainties about the exact implementation of these provisions pending the implementing acts of the European Commission. Such developments may create uncertainty regarding any future legislative or regulatory requirements arising from the implementation of delegated regulations. These provisions could have a negative impact on the value or liquidity of, and return on, the Notes in the event that the fallback provisions in the Terms and Conditions of the Notes are deemed unsuitable. Such developments may also create uncertainty regarding any future legislative or regulatory requirements arising from the implementation of delegated regulations.

In addition, the Benchmarks Regulation has been further amended by Regulation (EU) 2025/914 of 7 May 2025, applicable from 1 January 2026. One of the key changes to the regime is that only “benchmarks” (including EURIBOR) defined as critical or significant (determined based on quantitative or qualitative criteria), EU Paris-aligned benchmarks, EU Climate Transition benchmarks, and certain commodity benchmarks will remain in scope of the mandatory application of the Benchmarks Regulation.

Finally, if the Reference Rate (or any successor or alternative rate) was discontinued or otherwise unavailable, the floating rate of interest on Notes would be determined for the relevant period by the applicable fallback provisions (see Condition 4.6 (*Benchmark Discontinuation*)). Any of these measures could have an adverse effect on the market value or liquidity of, and return on, the Notes.

Risks Relating to Benchmark Event

Pursuant to Condition 4.6 (*Benchmark Discontinuation*), in the event of a “Benchmark Event”, the Issuer will (at its own cost) use reasonable endeavours to appoint an Independent Adviser (as defined in Condition 4.6 (*Benchmark Discontinuation*)). The Independent Adviser shall endeavour to determine a successor or replacement rate, permitting the Independent Adviser or the Issuer (in consultation with the Independent Adviser), acting in good faith, in a commercially reasonable manner to make necessary changes to the business day convention, the definition of business day, the interest determination date, the day count fraction and any method for calculating the Replacement Reference Rate, including any adjustment factor needed to make such Replacement Reference Rate comparable to the Reference Rate.

Such Replacement Reference Rate will (in the absence of manifest error) be final and binding, and no consent of the Noteholders shall be required in connection with effecting any Replacement Reference Rate, any other related adjustments and/or amendments to the terms and conditions of the relevant Notes (or any other document) which are made in order to effect such Replacement Reference Rate.

The Replacement Reference Rate may have no or very limited trading history and accordingly its general evolution and/or interaction with other relevant market forces or elements may be difficult to determine or measure. In addition, given the uncertainty concerning the availability of a Replacement Reference Rate and the involvement of an agent, the fallback provisions may not operate as intended at the relevant time and the Replacement Reference Rate may perform differently from the Reference Rate. This could significantly affect the performance of the Replacement Reference Rate compared to the historical and expected performance the Reference Rate. Any adjustment factor applied to the Notes may not adequately compensate such impact. This could in turn have a negative effect on the rate of interest on and trading value of the Notes and Noteholders may receive lower return on the Notes than anticipated at the time of the issue.

Notwithstanding the fallback provisions relating to Benchmark Events discussed above, no successor or replacement rate will be adopted, nor will the applicable adjustment spread be applied (in particular any Margin adjustment), nor will any other related adjustments and/or amendments to the Terms and Conditions of the Notes be made, if and to the extent that, in the determination of an authorised officer of the Issuer, the same would cause the Notes to cease qualifying as at least Tier 2 Own Funds (or, if different, whatever terminology employed by the Applicable Supervisory Regulations) of the Issuer or as other equivalent regulatory capital of the Issuer under the Applicable Supervisory Regulations.

If the Issuer is unable to appoint an Independent Adviser or if the Independent Adviser is unable to or otherwise does not advise the Issuer a successor or replacement rate for any Floating Interest Determination Date, no successor or replacement rate or any other successor, replacement or alternative benchmark or screen rate will be adopted and the Reference Rate for the relevant Floating Interest Period will be equal to the last Reference Rate available on the Screen Page as determined by the Calculation Agent. In such circumstances, notwithstanding the ability for the Issuer to elect to re-apply the provisions of Condition 4.6 (*Benchmark Discontinuation*) *mutatis mutandis* on one or more occasions until a Replacement Reference Rate has been determined, this could result in the effective application of a fixed rate to the Notes. Therefore, such adjustment could have unexpected commercial consequences and the Noteholders may receive less than they would have received in the absence of a Benchmark Event.

Deferrals of interest payments

Pursuant to Condition 4.4 (*Interest Deferral*), on any Mandatory Interest Deferral Date, the Issuer will be obliged to defer payment of all (but not some only) of the interest accrued to that date, and the Issuer will have no obligation to make such payment.

Any interest not paid on a Mandatory Interest Deferral Date and deferred shall so long as they remain outstanding constitute Arrears of Interest and shall be payable subject to the fulfilment of the Conditions to Settlement as outlined in Condition 4.4 (*Interest Deferral*). However, Noteholders will not receive any additional interest or compensation for the compulsory deferral of payment i.e. the resulting Arrears of Interest will not bear interest.

Any deferral of interest payments will be likely to have a material adverse effect on the market price of the Notes. In addition, as a result of the above provisions of the Notes, the market price of the Notes may be more volatile than the market prices of other debt securities on which interest accrues that are not subject to the above provisions and may be more sensitive generally to adverse changes in the Issuer's financial condition and Noteholders may receive less interest than initially anticipated or at a later date than initially anticipated.

Notes may be traded with accrued interest which payment may subsequently be deferred

The Notes may trade, and/or the prices for the Notes may appear, in trading systems with accrued interest. Purchasers of Notes in the secondary market may pay a price which reflects such accrued interest on purchase of the Notes. If one or several Interest Payments are deferred, a purchaser of Notes in the secondary market may not be entitled to the accrued interest (or part thereof) reflected in the purchase price of the Notes, which would cause the relevant Noteholders to receive less interest than initially anticipated and as a result to lose all or part of the value of their investment in the Notes.

The Solvency Capital Requirement and Minimum Capital Requirement ratios will be affected by the Issuer's or the Group's business decisions and, in making such decisions, the Issuer's and/or the Group's interests may not be aligned with those of the Noteholders

The Solvency Capital Requirement ratio stands at 210% as at 31 December 2024 (and the estimated Solvency Capital Requirement ratio stands at 210% as at 30 June 2025) and the Minimum Capital Requirement ratio stands at 407% on a solo basis as at 31 December 2024. These ratios are not audited.

Such ratio could be affected by a number of factors. Such ratios will also depend on the Issuer's or Group's decisions relating to its businesses and operations, as well as the management of its capital position. The Issuer will have no obligation to consider the interests of the Noteholders in connection with the strategic decisions of the Group, including in respect of capital management. Noteholders will not have any claim against the Issuer or any other member of the Group relating to decisions that affect the business and operations of the Group, including its capital position. Such decisions could cause Noteholders to lose all or part of the value of their investment in the Notes and could negatively impact the value of the Notes.

Moreover, if these ratios fall below a certain level, this may trigger a compulsory interest deferral as described in Condition 4.4 (*Interest Deferral*) and/or a deferral of redemption or purchase of the Notes as described in Condition 6 (*Redemption and Purchase*).

Deferral of redemption and purchase

Notwithstanding that a notice of redemption has been delivered to Noteholders, the Notes may not be redeemed or purchased by the Issuer pursuant to any of the redemption or purchase provisions referred to in the Terms and Conditions of the Notes unless the Conditions to Redemption, Purchase and Replacement set out in Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*) are satisfied.

In particular no redemption or purchase of the Notes can take place if (i) a Regulatory Deficiency has occurred and is continuing on the due date for redemption or purchase or would occur if the Notes were redeemed or purchased or (ii) an Insolvent Insurance Affiliate Winding-up has occurred and is continuing (all as defined and further described in the Terms and Conditions of the Notes).

The suspension of redemption or purchase of the Notes does not constitute a default under the Notes for any purpose and does not give Noteholders any right to take any enforcement action under the Notes.

The satisfaction of the Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*) may delay the date effectively redeemed and such delay may have a material adverse effect on the value of the Notes and on any decision of a Noteholder to reinvest the expected redemption proceeds of the Notes.

Early redemption risk

Subject to the Prior Approval of the Relevant Supervisory Authority and to other conditions set out in the Condition 6 (*Redemption and Purchase*), the Issuer may redeem the Notes in whole, but not in part, on (i) any day falling in the period from (and including) the First Call Date to (and including) the Reset Date or any Interest Payment Date thereafter.

Subject to the satisfaction of certain conditions, including the Prior Approval of the Relevant Supervisory Authority, the Issuer may also, at its option, redeem the Notes in whole but not in part during certain periods for certain tax reasons or upon the occurrence of certain events, including a Rating Event, an Accounting Event or if the conditions for a Clean-up Call are satisfied, as set out in Condition 6 (*Redemption and Purchase*).

In addition, upon the occurrence of a Capital Disqualification Event, and to the extent that the Notes are not otherwise called or redeemed or varied or substituted, and subject to the satisfaction of certain conditions, the Issuer may redeem the Notes in whole but not in part, as set out in Condition 6 (*Redemption and Purchase*).

Such redemption options will be exercised at the Base Call Price together with any accrued and unpaid interest up to the date fixed for redemption (including, for the avoidance of doubt, any Arrears of Interest (if any) thereon at such date).

The early redemption at the option of the Issuer may negatively affect the market value of the Notes. During any period when the Issuer may (or may be expected to) elect to redeem the Notes, the market value of the Notes generally will not rise substantially above the price at which they can be redeemed. This may also be true prior to the First Call Date.

The Issuer may also be expected to redeem the Notes when its cost of borrowing is lower than the interest rate on the Notes. Noteholders may not be able to reinvest the amounts received upon redemption at a rate that will provide the same return as their investment in the Notes.

Therefore, an optional redemption may reduce the profits Noteholders may have expected in subscribing in the Notes.

The Issuer may unilaterally elect to exchange or vary the Notes in certain circumstances

The Notes will be issued with the intention of being eligible as Tier 2 Own Funds of the Issuer. There is a risk that, after the issue of the Notes, a Capital Disqualification Event, Rating Event, Accounting Event or Alignment Event or an event pursuant to which the Issuer has the right to redeem the Notes pursuant to Condition 6.3 (*Redemption for Tax Reasons*) may occur.

This would entitle the Issuer, as an alternative to redeeming the Notes, and subject to certain conditions, but without any requirement for the consent or approval of the Noteholders, to unilaterally exchange or vary the Notes so that after such exchange or variation they would become Qualifying Equivalent Securities. Qualifying Equivalent Securities are securities issued by the Issuer that have, *inter alia*, terms not materially less favourable to the Noteholders than the terms of the Notes (as determined by the senior management of the Issuer in consultation with an Independent Agent). Due to the particular circumstances of each Noteholder, any Qualifying Equivalent Security may not be as favourable to each Noteholder in all respects or, if it were entitled to do so, a particular Noteholder may not make the same determination as the Issuer as to whether the terms of the relevant Qualifying Equivalent Securities are not materially less favourable to Noteholders than the terms of the Notes. The Issuer bears no responsibility towards the Noteholders for any adverse effects of such substitution or variation (including, without limitation, with respect to any adverse tax consequences suffered by any Noteholder).

Whilst the terms of the exchange or variation are required not to be materially prejudicial to the Noteholders (as a class), the Qualifying Equivalent Securities may have a significant adverse impact on the price of, and/or market for, the Notes or the circumstances of individual Noteholders.

No gross-up obligation unless a Tax Alignment Event has occurred

If French law should require any withholding or deduction for, or on account of, any present or future taxes, duties, assessments or governmental charges of whatever nature, the Issuer will not pay such additional amounts as would be necessary for each Noteholder, after such withholding or deduction, to receive the full amount then due and payable thereon in the absence of such withholding or deduction unless (i) a Tax Alignment Event has occurred and is continuing (as more fully described under Condition 7 (*Taxation*)) and (ii) a Redemption Alignment Event (as more fully described under Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*)) has occurred. In any event, no such additional amounts will be payable prior to the fifth (5th) anniversary of the Issue Date.

If the Issuer does not redeem the Notes upon the occurrence of an event as described above, Noteholders may receive less than the full amount due under the Notes, and the market value of the Notes may be adversely affected.

The Issuer will not be required to redeem the Notes if it is prohibited by French law from paying additional amounts

In the event that the Issuer is required to withhold amounts in respect of French taxes from Interest Payments on the Notes, the Terms and Conditions of the Notes provide that, subject to certain exceptions, the Issuer will pay additional amounts so that the Noteholders will receive the amount they would have received in the absence of such withholding as further described in the risk factor above entitled “*No gross-up obligation unless a Tax Alignment Event has occurred*”. Under French tax law, there is some uncertainty as to whether the Issuer may pay

such additional amounts. The Notes are intended to be eligible to “tier two” own funds regulatory capital and do not include mandatory redemption clauses since they are not permitted for “tier two” instruments such as the Notes under Article 73.1(d) of the Commission Delegated Regulation (EU) 2015/35 of 10 October 2014, as amended. As a result, the Terms and Conditions of the Notes provide for redemption at the option of the Issuer in such a case (subject to approval of the Relevant Supervisory Authority), but not for mandatory redemption. If the Issuer does not exercise its option to redeem the Notes in such a case, Noteholders will receive less than the full amount due under the Notes, and the market value of the Notes will be adversely affected.

No limitation on issuing or guaranteeing debt ranking senior to, or “pari passu” with, the Notes and no negative pledge

There is no restriction in the Notes on the amount of unsecured debt which the Issuer or members of the Issuer’s Group may issue or guarantee. The Issuer, its subsidiaries and affiliates may therefore incur additional indebtedness or grant guarantees in respect of indebtedness of third parties, including secured indebtedness and/or indebtedness or guarantees that rank *pari passu* or senior to the obligations under and in connection with the Notes. If the Issuer’s financial condition were to deteriorate, the relevant Noteholders could suffer direct and materially adverse consequences, including deferral of interest and if the Issuer were to be liquidated (whether voluntarily or not), secured claims and claims of creditors ranking senior to Noteholders would be paid out in priority to Noteholders claims and Noteholders could thus suffer loss of their entire investment.

In addition, the Notes do not contain a negative pledge or similar clause, meaning that the Issuer may pledge its assets to secure other types of capital market instrument without granting similar security in respect of the Notes in favour of the Noteholders. Investor in the Notes should be aware of this differentiating component as compared to most senior bonds because of the “Tier 2 Own Funds” nature of the Notes.

Restrictions on right to set-off

In accordance with Condition 14 (*Waiver of Set-Off*), Noteholders waive any right of set-off, compensation and retention in relation to such Notes. As a result, subject to applicable law, no Noteholder who is indebted to the Issuer will be entitled to exercise any right of set-off or counterclaim against moneys owed to the Issuer in respect of such indebtedness, including any right of deduction, netting, compensation or retention in respect of any amount owed to it by the Issuer in respect of, or arising directly or indirectly under or in connection with the Notes, and each Noteholder will be deemed to have waived all such rights of deduction, set-off, netting, compensation, retention or counterclaim. As a result, a Noteholder who is also a debtor of the Issuer cannot set-off its payment obligation against any sum due to it by the Issuer under the Notes. Therefore, Noteholders will have to fulfil their obligations under the Notes and to pay any amount due to the Issuer, and given that a set-off right will not apply, the Noteholders would have to engage measures in order to recover their debt in cash, which is due to them by the Issuer. The Noteholders will have to wait for the redemption of the Notes in cash as provided in the Terms and Conditions of the Notes and are therefore exposed to risk that they may not receive any amount in respect of their claims or any amount due under the Notes. This waiver of set-off could therefore have an adverse impact on the Noteholders in the event that the Issuer were to become insolvent.

Risks relating to the application and development of and changes to the regulatory regime: Solvency II

The Notes are issued for capital adequacy regulatory purposes with the intention that all the proceeds of the Notes be eligible (x) for the purpose of the determination of the Issuer's solvency margin or capital adequacy levels under the Applicable Supervisory Regulations or (y) at least as tier two own funds regulatory capital (or, if different, whatever terminology employed by the Applicable Supervisory Regulations) for the purposes of the determination of the Issuer's regulatory capital under the Applicable Supervisory Regulations, except, in each case, as a result of the application of the limits on inclusion (on a solo or group-level basis) of such securities in, respectively, the Issuer's solvency margin or own funds regulatory capital, as the case may be.

The Solvency II Directive 2009/138/EC was implemented under French law and has entered into force on 1 January 2016. The European Commission's Solvency II Delegated Regulation 2015/35 supplementing Solvency II came into force on 18 January 2015 and is directly applicable to the relevant insurance and reinsurance undertakings in the European Union. The effect of the implementing measures related to the Solvency II requirements could have adverse consequences on the Noteholders. In particular:

- the Issuer will be obliged to defer Interest Payments if the own funds regulatory capital (or, if different, whatever terminology is employed to denote such concept by the then Applicable Supervisory Regulations) of the Issuer and/or the Group is not sufficient to cover its capital requirements;
- in the same circumstances, the redemption or purchase of Notes will be only permitted subject to the Prior Approval of the Relevant Supervisory Authority.

Even though "level two" implementation measures have been enacted and "level three" guidelines have been released, such implementation measures and guidelines may be amended, supplemented or superseded. Moreover, there is considerable uncertainty as to how regulators, including the ACPR, will interpret the "level two" implementation measures and/or "level three" guidance and apply them to the Issuer and/or the Group.

Any change that may occur in the interpretation and/or application of Solvency II Directive 2009/138/EC subsequent to the date of this Prospectus and/or any subsequent change to such rules and other variables may individually and/or in aggregate negatively affect the calculation of the Issuer's and/or the Group's Solvency Capital Requirement (or, if different, whatever terminology is employed to denote such requirement by the then Applicable Supervisory Regulations) and may result in more onerous regulatory capital requirements for the Issuer and/or the Group and thus increase the risk of deferral of Interest Payments, or result in the occurrence of a Capital Disqualification Event and the subsequent early redemption of the Notes, as a result of which a Noteholder could lose all or part of the value of their investment in the Notes.

A Capital Disqualification Event occurs if as a result of a notification by the Relevant Supervisory Authority, the Notes would not be treated at least as Tier 2 Own Funds regulatory capital. This includes (without limitation) an event where the Applicable Supervisory Regulations are supplemented or amended in relation to provisions specifically governing internationally active insurance groups (IAIG) and/or global systemically important insurers (G-SII), and where, following such supplement and/or amendment, the Notes would likely not or no longer be recognised in full as tier 2 own-funds items pursuant to such provisions, including after the expiration of transitional rules, if any. The Solvency II Directive 2009/138/EC is currently subject to international regulatory guidance and reform proposals. For example, the

Directive (EU) 2025/2 of the European Parliament and of the Council of 27 November 2024 amending the Solvency II Directive 2009/138/EC as regards proportionality, quality of supervision, reporting, long-term guarantee measures, macro-prudential tools, sustainability risks and group and cross-border supervision was published in the Official Journal of the European Union on 8 January 2025 and entered into force on 28 January 2025.

Application of the resolution powers under the EU Directive on Recovery and Resolution of Insurance Undertakings

Directive (EU) 2025/1 of 27 November 2024, establishing an EU-wide framework for the recovery and resolution of insurance and reinsurance undertakings and amending Directives 2002/47/EC, 2004/25/EC, 2007/36/EC, 2014/59/EU, and (EU) 2017/1132, as well as Regulations (EU) No 1094/2010, (EU) No 648/2012, (EU) No 806/2014, and (EU) 2017/1129 (the “**IRR**D”), entered into force on 28 January 2025. Member States are required to adopt and implement the laws and regulations necessary for compliance with the IRRD by 29 January 2027, to take effect from 30 January 2027.

The IRRD currently provides for (i) a variety of preventive measures to reduce the likelihood of insurance or reinsurance undertakings requiring public financial support and (ii) the commencement of resolution procedures when insurance or reinsurance undertakings are failing or likely to fail, where there is no prospect that private sector alternatives or supervisory measures would prevent such failure.

An insurance or reinsurance undertaking shall be failing or likely to fail in any one of the following circumstances: (a) it breaches or is likely to breach its minimum capital requirement (MCR) and there is no reasonable prospect of compliance being restored; (b) it no longer fulfils the conditions for authorisation or fails seriously in its obligations under the laws and regulations to which it is subject, or there are objective elements to support that the undertaking will, in the near future, seriously fail its obligations in a way that would justify the withdrawal of the authorisation; (c) the assets of the insurance or reinsurance undertaking are less than its liabilities, or there are objective elements to support that a determination that the assets of the undertaking will, in the near future, be in such a situation; (d) it is unable to pay its debts or other liabilities, including payments to policyholders or beneficiaries, as they fall due, or there are objective elements to support a determination that the undertaking will, in the near future, be in such a situation; or (e) extraordinary public financial support is required.

The IRRD currently provides for five resolution tools and associated powers:

- (a) the solvent run-off tool empowers the resolution authority to terminate the activities of an undertaking or company while prohibiting it from underwriting new insurance or reinsurance business,
- (b) The sale-of-business tool enables the resolution authority to direct the sale of all or part of the undertaking’s business on commercial terms. This can be done without requiring the consent of shareholders or compliance with any procedural requirements that would ordinarily apply under national corporate, insolvency, or other applicable legal frameworks, including administrative or regulatory laws,
- (c) The bridge undertaking tool allows the resolution authority to transfer shares, ownership instruments, or assets, rights, and liabilities of the undertaking under resolution to a temporary entity known as a “bridge undertaking”, a vehicle which is wholly or partially owned by public authorities or controlled by the resolution authority. The purpose of this entity is to ensure the continuation of critical functions to policyholders of the failing insurance or reinsurance undertaking,

(d) the asset and liability separation tool, which enables the resolution authority to transfer assets, rights or liabilities of an undertaking or company under resolution to an asset and liability management vehicle to allow such assets to be managed and worked out over time, and

(e) the write-down or conversion tool grants the resolution authority the power to reduce the claims of unsecured creditors, such as the Noteholders, or to convert certain unsecured debt claims, including the Notes, into equity. This equity may subsequently be subject to cancellation, transfer, or dilution. Application of this tool follows the principle of the inverse order of priority used in liquidation scenarios, whereby equity instruments and Tier 1 capital instruments are affected first, followed by Tier 2 capital instruments (such as the Notes), Tier 3 capital instruments, and, ultimately, other unsecured claims with a higher ranking in liquidation (see Condition 15 (*Acknowledgement of Bail-In and Write-Down or Conversion Powers*)), which would follow the priority of claims applicable under normal insolvency proceedings, pursuant to Article 38 IRRD.

Normal insolvency proceedings will remain the alternative path for the whole or parts of a (re)insurer that cannot be resolved, and the IRRD provides for a no creditor worse-off principle, the exact extent of which remains to be determined.

If the resolution tools provided for in the IRRD are exercised, including the bail-in tool, despite a no creditor worse-off principle being applicable, Noteholders could be affected and lose all or part of their investment in the Notes if the Issuer and/or the Group were to experience financial difficulty and be failing or likely to fail. In addition, if the Issuer's and/or the Group's financial condition deteriorates, or is perceived to deteriorate, the existence of these powers could cause the market value and/or the liquidity of the Notes to decline more rapidly than would be the case in the absence of such powers.

Given that the implementation of IRRD into French Law is not expected before the last quarter of 2026, it is not possible to foresee exactly how, or precisely when, the key elements of the IRRD will translate into changes to the current framework and their precise impact on the Issuer and other insurance undertakings in Europe, and on regulatory capital instruments issued by the Issuer, including the Notes. The conversion of eligible liabilities into capital instruments may only be applied to insurance claims where the resolution authority justifies that the resolution objectives cannot be achieved through other resolution tools, or the conversion of insurance claims would lead to a better protection for policy holders compared to the use of any other resolution tool and the write-down of their claims. As a result of any such measures not being implemented as currently foreseen, the impact anticipated as of the date of this Prospectus may deviate and this could have an adverse effect on the interests of the Noteholders.

3. RISKS RELATING TO THE MARKET OF THE NOTES

Credit ratings

The Notes have been rated A- by S&P. Other independent credit rating agencies could decide to assign credit ratings to the Notes and such credit ratings may be higher than, the same as or lower than the credit rating provided by S&P. The rating provided by S&P may not reflect the potential impact of all risks related to structure, market, additional factors discussed herein, and other factors that may affect the value of the Notes. A rating is not a recommendation to buy, sell or hold securities and may be subject to revision, suspension, reduction or withdrawal at any time by the relevant rating agency. A revision, suspension or withdrawal of a rating may adversely affect the market price and liquidity of the Notes.

Liquidity risks and market value of the Notes

The market value of the Notes will be affected by the financial condition and creditworthiness of the Issuer and/or the Group and a number of additional factors, including, but not limited to, market interest, yield rates and certain market expectations with respect to the Issuer making use of a right to redeem the Notes. The market for the Notes may be influenced by general economic and market conditions, political events in France or elsewhere, including factors affecting capital markets generally and the stock exchanges on which the Notes are traded, changes in the regulatory environment, in particular relating to regulatory capital requirements for insurance companies, and, to varying degrees, other factors such as the outstanding amount of the Notes, any redemption features of the Notes and the level, direction and volatility of interest rates, currency exchange rates and inflation rates in other European and other industrialised countries. Events in France, Europe or elsewhere may cause market volatility or such volatility may adversely affect the price and liquidity of the Notes or economic and market conditions may have any other adverse effect. The price at which a Noteholder will be able to sell the Notes may be at a discount, which could be substantial, from the issue price or the purchase price paid by such Noteholder, and in extreme circumstances such Noteholders could suffer loss of their entire investment.

An active trading market for the Notes may not develop

The Notes may have no established trading market when issued, and one may never develop. If a market does develop, it may not be liquid. Therefore, Noteholders may not be able to sell their Notes easily or at prices that provide them with a yield comparable to similar investments that have a developed secondary market. Illiquidity may have an adverse effect on the market value of the Notes. Although application has been made for the Notes to be listed on the Official List of the Luxembourg Stock Exchange and admitted to trading on the regulated market of the Luxembourg Stock Exchange, an active trading market may not develop. Accordingly, the trading market for the Notes may not develop or may be illiquid. The Issuer is entitled, under certain circumstances, to buy the Notes, which shall then be cancelled or caused to be cancelled, and to issue further Notes. Such transactions may favourably or adversely affect the price development of the Notes. If additional and competing products are introduced in the markets, this may adversely affect the value of the Notes and potentially to a great extent.

Exchange rate risks and exchange controls

The Issuer will pay principal and interest (including any outstanding Arrears of Interest and/or Additional Amounts) on the Notes in Euro. This presents certain risks relating to currency conversions if an investor's financial activities are denominated principally in a currency or currency unit (the “**Investor's Currency**”) other than Euro. These include the risk that exchange rates may significantly change (including changes due to devaluation of Euro or revaluation of the Investor's Currency) and the risk that authorities with jurisdiction over the Investor's Currency may impose or modify exchange controls. An appreciation in the value of the Investor's Currency relative to the Euro would decrease (a) the Investor's Currency-equivalent yield on the Notes, (b) the Investor's Currency equivalent value of the principal payable on the Notes and (c) the Investor's Currency-equivalent market value of the Notes.

Government and monetary authorities may impose (as some have done in the past) exchange controls that could adversely affect an applicable exchange rate. As a result, Noteholders whose financial activities are carried out or dependent principally in a currency other than Euro may receive less interest or principal than expected, or no interest or principal as measured in the Investor's Currency.

4. LEGAL RISKS RELATING TO THE NOTES

Regulatory actions against the Issuer or an insurer in the Group in the event of resolution could materially adversely affect the value of the Notes

While a new framework with respect to resolution powers in the event of resolution has been adopted at EU level but not implemented yet in France (see the risk factor entitled “*Application of the resolution powers under the proposed EU Directive on Recovery and Resolution of Insurance Undertakings*”), on 28 November 2017, the ordinance no. 2017-1608 of 27 November 2017 (the “**Ordinance**”) establishing a resolution framework for insurers was ratified in 2019 and has set out the French legal framework providing effective resolution strategies for French insurers.

The Ordinance is designed to provide the French supervision authority *i.e.* the ACPR with a credible set of tools to intervene in an institution that is failing or likely to fail (as defined in the Ordinance) so as to ensure the continuity of the institution's critical financial and economic functions, while minimising the impact of the institution's failure on the economy and financial system.

Under the Ordinance, powers have been granted to the ACPR to implement resolution measures with respect to an institution and certain of its affiliates (each a “**relevant entity**”) (including the Issuer) in circumstances in which the resolution conditions are met – namely that the institution is failing or likely to fail. Since resolution powers are intended to be used prior to the point at which ordinary insolvency proceedings would have been initiated in respect of the Issuer, Noteholders may not be able to anticipate any potential exercise of such powers nor the potential impact on the Issuer, the Group or the Notes of their exercise.

The Ordinance currently contains the following main resolution tools which could be applied to the Issuer or any insurer or reinsurer within its Group:

- (i) bridge institution: enables the ACPR to transfer all or part of the business of the relevant entity to a “bridge entity”;
- (ii) asset separation: enables the ACPR to transfer impaired or problem assets of the relevant entity to asset management vehicles to allow such assets to be managed and worked out over time; and
- (iii) administrator (*administrateur de résolution*): enables the ACPR to intervene in the corporate governance of the relevant entity.

Where the statutory conditions for use of resolution powers have been met, the ACPR would be expected to exercise the powers without the consent of holders of the Notes.

The impact of the Ordinance and its implementing provisions on insurance institutions, including the Issuer or any insurer or reinsurer within its Group, is currently unclear and may be impacted by the implementation into French law of the IRRD by 2026 but its current and future implementation and applicability to the Issuer and the Group or the taking of any action pursuant to it could materially affect the rights of the Noteholders, the activity and financial condition of the Issuer and the Group, the value of the Notes and could lead to holders losing some or all of the value of their investment in such Notes.

Change of law

The Terms and Conditions of the Notes are based on French law in effect as at the date of this Prospectus. No assurance can be given as to the impact of any possible judicial or administrative decision or change in French law or the official application or interpretation of French law after the date of this Prospectus.

DOCUMENTS INCORPORATED BY REFERENCE

This Prospectus should be read and construed in conjunction with the sections identified in the cross-reference list below (the “**Cross-Reference List**”) of the following documents which have been previously published or are published simultaneously with the Prospectus and that have been filed with the CSSF in Luxembourg and shall be incorporated by reference in, and form part of, this Prospectus (together, the “**Documents Incorporated by Reference**”):

- (a) the sections identified in the Cross-Reference List below of the French language *2025 Rapport financier semestriel* of the Issuer which includes the unaudited interim condensed consolidated financial statements of the Issuer as at 30 June 2025 and the report of the statutory auditors (limited review) on the interim condensed consolidated financial statements (the “**2025 Interim Financial Report**”)

[SCOR - RAPPORT FINANCIER SEMESTRIEL AU 30 JUIN 2025;](#)

- (b) the sections identified in the Cross-Reference List below of the French language *2024 Document d'enregistrement universel* of the Issuer filed with the AMF on 20 March 2025 under number D.25-0124, which includes the audited consolidated financial statements for the year ended 31 December 2024 and the report of the statutory auditors on the audited consolidated financial statements for the year ended 31 December 2024 (the “**2024 URD**”)

[SCOR - DOCUMENT D'ENREGISTREMENT UNIVERSEL 2024;](#) and

- (c) the sections identified in the Cross-Reference List below of the French language *2023 Document d'enregistrement universel* of the Issuer filed with the AMF on 20 March 2024 under number D.24-0142, which includes the audited consolidated financial statements for the year ended 31 December 2023 and the report of the statutory auditors on the audited consolidated financial statements for the year ended 31 December 2023 (the “**2023 URD**”)

[SCOR - DOCUMENT D'ENREGISTREMENT UNIVERSEL 2023.](#)

All Documents Incorporated by Reference are available on the website of the Luxembourg Stock Exchange (www.luxse.com) and on the website of the Issuer (<https://www.scor.com/fr/informations-financieres>) and these reports only and no other contents of each such site are incorporated by reference herein.

Free English translations of the 2025 Interim Financial Report, the 2024 URD and the 2023 URD are available on the website of the Issuer (<https://www.scor.com/fr/informations-financieres>). These documents are free translations of the corresponding French language documents and are furnished for information purposes only and are not incorporated by reference in this Prospectus. The only binding versions are the French language versions.

Any statement contained in the Documents Incorporated by Reference shall be deemed to be modified or superseded for the purpose of this Prospectus, to the extent that a statement contained herein modifies or supersedes such earlier statement (whether expressly, by implication or otherwise). Any statement so modified or superseded shall not be deemed, except as so modified or superseded, to constitute a part of this Prospectus.

For the purpose of the Prospectus Regulation, the information incorporated by reference in this Prospectus is set out in the Cross-Reference List below and shall be read in connection with such cross-reference. For the avoidance of doubt, the information requested to be disclosed by the Issuer as a result of Annex 7 of the Commission Delegated Regulation (EU) 2019/980, supplementing the Prospectus Regulation (as amended, the “**Commission Delegated Regulation**”) and not referred to in the cross-reference table below is either contained in the relevant sections of this Prospectus or is not relevant to the Issuer. Any information contained in the Documents Incorporated by Reference that is not cross-referenced in the following table shall not be incorporated in, and form part of, this Prospectus.

CROSS-REFERENCE LIST

Rule	Commission Delegated Regulation – Annex 7	2025 Interim Financial Report	2024 URD	2023 URD
3	RISK FACTORS			
	A description of the material risks that are specific to the issuer and that may affect the issuer's ability to fulfil its obligations under the securities, in a limited number of categories, in a section headed 'Risk Factors'. In each category the most material risks, in the assessment of the issuer, offeror or person asking for admission to trading on a regulated market, taking into account the negative impact on the issuer and the probability of their occurrence, shall be set out first. The risk factors shall be corroborated by the content of the registration document.	15-16	123-151	
4	INFORMATION ABOUT THE ISSUER			
4.4	<u>History and development of the Issuer</u>			
4.1.1	the legal and commercial name of the issuer		275	
4.1.2	the place of registration of the issuer, its registration number and legal entity identifier ('LEI').		275	
4.1.3	the date of incorporation and the length of life of the issuer, except where indefinite		275	
4.1.4	the domicile and legal form of the issuer, the legislation under which the issuer operates, its country of incorporation, the address, telephone number of its registered office (or principal place of business if different from its registered office) and website of the issuer, if any, with a disclaimer that the information on the website does not form part of the prospectus unless that information is incorporated by reference into the prospectus		275-277	
4.1.5	any recent events particular to the issuer and which are to a material extent relevant to the evaluation of the issuer's solvency	3-12	24-25, 38, 253 and 395	
4.1.6	Credit ratings assigned to the issuer at the request or with the cooperation of the issuer in the rating process.	7	13	
5	BUSINESS OVERVIEW			
5.1	<u>Principal activities</u>			
5.1.1	A brief description of the issuer's principal activities stating the main categories of products sold and/or services performed		13-20	
5.1.2	The basis for any statements made by the issuer regarding its competitive position.		25	

Rule	Commission Delegated Regulation – Annex 7	2025 Interim Financial Report	2024 URD	2023 URD
6	ORGANISATIONAL STRUCTURE			
6.1	If the issuer is part of a group, a brief description of the group and the issuer's position within the group. This may be in the form of, or accompanied by, a diagram of the organisational structure if this helps to clarify the structure.		11-12	
6.2	If the issuer is dependent upon other entities within the group, this must be clearly stated together with an explanation of this dependence.		11-12	
9	ADMINISTRATIVE, MANAGEMENT, AND SUPERVISORY BODIES			
9.1	Names, business addresses and functions in the issuer of the following persons, and an indication of the principal activities performed by them outside the issuer where these are significant with respect to that issuer: (a) members of the administrative, management or supervisory bodies; (b) partners with unlimited liability, in the case of a limited partnership with a share capital.	13-14	41-59	
9.2.	<u>Administrative, management, and supervisory bodies conflicts of interests</u> Potential conflicts of interests between any duties to the issuer, of the persons referred to in item 9.1, and their private interests and or other duties must be clearly stated. In the event that there are no such conflicts, a statement to that effect must be made.	15	67 120	
10	MAJOR SHAREHOLDERS			
10.1	To the extent known to the issuer, state whether the issuer is directly or indirectly owned or controlled and by whom and describe the nature of such control and describe the measures in place to ensure that such control is not abused.		263-265	
10.2	A description of any arrangements, known to the issuer, the operation of which may at a subsequent date result in a change of control of the issuer.		274	
11	FINANCIAL INFORMATION CONCERNING THE ISSUER'S ASSETS AND LIABILITIES, FINANCIAL POSITION AND PROFITS AND LOSSES			
11.1	<u>Historical Financial Information</u>			
11.1.1	Historical financial information covering the latest two financial years (at least 24 months) or such shorter period as the issuer has been in operation and the audit report in respect of each year.	17-46	162-259	179-276

Rule	Commission Delegated Regulation – Annex 7	2025 Interim Financial Report	2024 URD	2023 URD
11.1.3	Accounting standards The financial information must be prepared according to International Financial Reporting Standards as endorsed in the Union based on Regulation (EC) No 1606/2002. If Regulation (EC) No 1606/2002 is not applicable the financial statements must be prepared according to: (a) a Member State’s national accounting standards for issuers from the EEA as required by Directive 2013/34/EU; (b) a third country’s national accounting standards equivalent to Regulation (EC) No 1606/2002 for third country issuers. Otherwise the following information must be included in the registration document: (a) a prominent statement that the financial information included in the registration document has not been prepared in accordance with International Financial Reporting Standards as endorsed in the Union based on Regulation (EC) No 1606/2002 and that there may be material differences in the financial information had Regulation (EC) No 1606/2002 been applied to the historical financial information; (b) immediately following the historical financial information a narrative description of the differences between Regulation (EC) No 1606/2002 as adopted by the Union and the accounting principles adopted by the issuer in preparing its annual financial statements.	49-53 and 54 for further details on reconciliation with IFRS data. 24-25	29-32 and 36-37 for further details on reconciliation with IFRS data. 170-178	188-196
11.1.5	Consolidated financial statements If the issuer prepares both stand-alone and consolidated financial statements, include at least the consolidated financial statements in the registration document. (a) the balance sheet; (b) the income statement; (c) the accounting policies and explanatory notes.	17-46 17-18 19 24-46	161-259 162-163 164 169-253	179-276 180-181 182 187-269
11.1.6	Age of financial information The balance sheet date of the last year of audited financial information may not be older than 18 months from the date of the registration document	17-46	162-253	180-269
11.2	<u>Auditing of historical annual financial information</u>			

Rule	Commission Delegated Regulation – Annex 7	2025 Interim Financial Report	2024 URD	2023 URD
11.2.1	The historical financial information must be independently audited. The audit report shall be prepared in accordance with the Directive 2014/56/EU and Regulation (EU) No 537/2014. Where Directive 2014/56/EU and Regulation (EU) No 537/2014 do not apply: (a) the historical financial information must be audited or reported on as to whether or not, for the purposes of the registration document, it gives a true and fair view in accordance with auditing standards applicable in a Member State or an equivalent standard. Otherwise, the following information must be included in the registration document: (i) a prominent statement disclosing which auditing standards have been applied; (ii) an explanation of any significant departures from International Standards on Auditing; (b) if audit reports on the historical financial information contain qualifications, modifications of opinion, disclaimers or an emphasis of matter, such qualifications, modifications, disclaimers or emphasis of matter must be reproduced in full and the reasons given.	47	255-259	271-276
11.3	<u>Legal and arbitration proceedings</u> Information on any governmental, legal or arbitration proceedings (including any such proceedings which are pending or threatened of which the issuer is aware), during a period covering at least the previous 12 months which may have, or have had in the recent past significant effects on the issuer and/or group's financial position or profitability, or provide an appropriate negative statement.	9 46	253	
12	MATERIAL CONTRACTS			
12.1	A brief summary of all material contracts that are not entered into in the ordinary course of the issuer's business, which could result in any group member being under an obligation or entitlement that is material to the issuer's ability to meet its obligations to security holders in respect of the securities being issued.		284	

TERMS AND CONDITIONS OF THE NOTES

The terms and conditions of the Notes (each a “**Condition**” and together the “**Conditions**”) will be as follows:

The issue of the EUR 500,000,000 fixed to floating rate subordinated notes due September 2055 (the “**Notes**”) issued by SCOR SE, a *société européenne*, whose registered office is located at 5 avenue Kléber, 75016 Paris, France, registered with the trade and companies register (RCS) of Paris under number 562 033 357 (the “**Issuer**”), was decided by Mr. Thierry Léger, Chief Executive Officer (*Directeur général*) of the Issuer on 3 September 2025 acting pursuant to a resolution of the Board of Directors (*Conseil d'administration*) of the Issuer adopted on 6 May 2025.

A fiscal, paying and calculation agency agreement dated as of 5 September 2025 (the “**Agency Agreement**”) has been entered into in relation to the Notes between the Issuer and BNP PARIBAS (acting through its Securities Services business), as fiscal agent, paying agent and calculation agent (together with any substitute or successors from time to time of the relevant agents, in such capacities, under the Agency Agreement) (the “**Fiscal Agent**” or the “**Paying Agent**” or the “**Calculation Agent**”). Copies of the Agency Agreement are available for inspection during usual business hours at the specified office of the Fiscal Agent.

References to Conditions are, unless the context otherwise requires, to the numbered paragraphs below.

1. DEFINITIONS

1.1 Definitions

For purposes hereof, the following definitions shall apply:

“**1st Ranking Senior Subordinated Obligations**” means any direct, unconditional, unsecured and senior subordinated obligations of the Issuer which rank *pari passu* without any preference among themselves and *pari passu* with any other existing or future direct, unconditional, unsecured and 1st ranking senior subordinated obligations of the Issuer, and shall be subordinated to all direct, unconditional, unsecured and unsubordinated obligations of the Issuer (including any Senior Notes), in each case outstanding from time to time, but shall rank in priority to any Senior Subordinated Obligations, any existing or future direct, unconditional, unsecured and subordinated obligations of the Issuer that rank or are expressed to rank *pari passu* with the Senior Subordinated Obligations, any subordinated obligations of the Issuer that rank or are expressed to rank junior to the Senior Subordinated Obligations, any *prêts participatifs* granted to the Issuer, any *titres participatifs* issued by the Issuer, any Deeply Subordinated Obligations issued by the Issuer. The 1st Ranking Senior Subordinated Obligations shall also rank in priority to any class of share capital, whether represented by ordinary shares or preference shares (*actions de préférence*), issued by the Issuer (if any).

“**Account Holder**” means any authorised financial intermediary institution entitled to hold, directly or indirectly, accounts on behalf of its customers with Euroclear France, and includes Clearstream Banking S.A. (“**Clearstream**”) and Euroclear Bank SA/NV (“**Euroclear**”).

An “**Accounting Event**” shall be deemed to have occurred if an opinion of a recognised accountancy firm of international standing has been delivered to the Issuer and the Fiscal Agent stating that, as a result of any change in, or amendment to, the Applicable Accounting Standards, the obligations of the Issuer in respect of the principal amount of the Notes must not, or must no longer, be recorded as “liabilities” pursuant to IFRS, or any other accounting standards that may replace the IFRS, for the purposes of the consolidated financial statements of the Issuer.

“**Actual/360**” means the actual number of days divided by 360.

“Actual/Actual (ICMA)” means:

- (i) in the case of Notes where the number of days in the relevant period from (and including) the most recent Interest Payment Date (or, if none, the Issue Date) to (but excluding) the relevant payment date (the **“Accrual Period”**) is equal to or shorter than the Fixed Interest Period during which the Accrual Period ends, the number of days in such Accrual Period divided by the number of days in such Fixed Interest Period; or
- (ii) in the case of Notes where the Accrual Period is longer than the Fixed Interest Period during which the Accrual Period ends, the sum of:
 - (A) the number of days in such Accrual Period falling in the Fixed Interest Period in which the Accrual Period begins divided by the number of days in such Fixed Interest Period; and
 - (B) the number of days in such Accrual Period falling in the next Fixed Interest Period divided by the number of days in such Fixed Interest Period.

“Additional Amounts” has the meaning ascribed to it in Condition 7 (*Taxation*).

“Adjustment Spread” means either (a) a spread (which may be positive, negative or zero), or (b) a formula or methodology for calculating a spread, in either case, which the Independent Adviser determines and which is required to be applied to the Successor Rate or the Alternative Rate (as applicable), to reduce or eliminate, to the fullest extent reasonably practicable in the circumstances, any economic prejudice or benefit as the case may be to Noteholders as a result of the replacement of the Reference Rate (or component part thereof) with the Successor Rate or the Alternative Rate (as the case may be), and is the spread, formula or methodology which:

- (a) in the case of a Successor Rate, is formally recommended or formally provided as an option for parties to adopt in relation to the replacement of the Reference Rate with the successor rate by any Relevant Nominating Body; or (if no such recommendation or provision has been made, or in the case of an Alternative Rate)
- (b) the Independent Adviser determines, is customarily applied to the relevant Successor Rate or the Alternative Rate (as the case may be) in international debt capital markets transactions to produce an industry-accepted replacement rate for the Reference Rate (or component part thereof); or
- (c) if the Independent Adviser determines that no such spread is customarily applied, the Independent Adviser determines and which is recognised or acknowledged as being the industry standard for over-the-counter derivative transactions which reference the Reference Rate (or component part thereof), where such rate has been replaced by the Successor Rate or the Alternative Rate (as the case may be).

“Alternative Rate” means an alternative benchmark or screen rate which the Independent Adviser determines in accordance with Condition 4.6 (*Benchmark Discontinuation*) and which is customarily applied in international debt capital markets transactions for the purposes of determining rates of interest (or the relevant component part thereof) for a determined interest period in euro.

“Amounts Due” has the meaning ascribed to it in Condition 15 (*Acknowledgement of Bail-In and Write-Down or Conversion Powers*).

“Applicable Accounting Standards” means the International Financial Reporting Standards

as implemented in the European Union (“**IFRS**”), as applicable at the relevant dates and for the relevant periods, or any other accounting standards that may replace the IFRS and applied by the Issuer which subsequently supersede them.

“Applicable Supervisory Regulations” means the Solvency II Directive (and any laws or regulations implementing the Solvency II Directive, including by the French ordinance (*ordonnance*) no. 2015-378 dated 2 April 2015 completed by the decree (*décret*) no. 2015-513 dated 7 May 2015 and the order (*arrêté*) of the same date), the Solvency II Regulations and any other solvency margin, capital adequacy regulations, capital requirements or regulatory capital rules (including the guidelines and recommendations of the European Insurance and Occupational Pensions Authority (or any successor authority), the official application or interpretation of the Relevant Supervisory Authority and any applicable decision of any court or tribunal) from time to time in effect in France (or if the Issuer becomes domiciled in a jurisdiction other than France, in such other jurisdiction) and applicable to the Issuer and/or the Group, as applied and construed by the Relevant Supervisory Authority or an official application or interpretation of those regulations including a decision of a court or tribunal and applicable to the Issuer and its Group, which would lay down the requirements to be fulfilled by financial instruments for inclusion as at least Tier 2 Capital that the Notes would be expected to fall under on or about the Issue Date, as opposed to own funds regulatory capital of any other tier (or, if different, whatever terminology is employed to denote such concept), for single solvency and group solvency purposes of the Issuer and/or the Group.

“Arrears of Interest” has the meaning ascribed to it in Condition 4.4 (*Interest Deferral*).

“Bail-in Power” has the meaning ascribed to it in Condition 15 (*Acknowledgement of Bail-In and Write-Down or Conversion Powers*).

“Base Call Price” is equal to the Principal Amount of the Notes together with any accrued and unpaid interest (and any Arrears of Interest) up to the Redemption Date.

“Benchmark Event” means, with respect to the Reference Rate (or component part thereof):

- (i) the Reference Rate (or component part thereof) ceasing to be published for a period of at least five (5) consecutive Business Days or ceasing to exist; and/or
- (ii) a public statement or publication of information by or on behalf of the administrator of the Reference Rate (or component part thereof), announcing that it has ceased or will cease to publish the Reference Rate (or component part thereof), permanently or indefinitely (provided that, at that time, there is no successor administrator that will continue to provide the Reference Rate); and/or
- (iii) a public statement or publication of information by the supervisor of the administrator of the Reference Rate (or component part thereof), that the Reference Rate (or component part thereof) has been or will be permanently or indefinitely discontinued; and/or
- (iv) a public statement or publication of information by the supervisor of the administrator of the Reference Rate (or component part thereof) that the Reference Rate (or component part thereof) has been or will be prohibited from being used either generally, or that its use will be subject to restrictions or adverse consequences which would not allow its further use in respect of the Notes; and/or
- (v) a public statement or publication of information by the supervisor of the administrator of the Reference Rate (or component part thereof) that, in the view of such supervisor, such Reference Rate (or component part thereof) is no longer representative of an

underlying market or the methodology to calculate the Reference Rate has materially changed; and/or

- (vi) it has or will become unlawful for the Issuer, the Calculation Agent or the Paying Agent to calculate any payment due to be made to any Noteholder using the Reference Rate (or component part thereof); and/or
- (vii) that a decision to withdraw the authorisation or registration pursuant to Article 35 of the Benchmarks Regulation of any benchmark administrator previously authorised to publish such Reference Rate (or component part thereof) has been adopted;

provided that, the Benchmark Event shall occur on the earlier of the dates of the events referenced in sub-paragraphs (ii), (iii), (iv), and (v).

“Benchmarks Regulation” means Regulation (EU) 2016/1011, as amended.

“Business Day” means, except as otherwise specified herein, a day (other than a Saturday or a Sunday) on which commercial banks and foreign exchanges settle payments and are open for business (including dealings in foreign exchanges and foreign currency deposits) in Luxembourg and Paris and a T2 Business Day.

A **“Capital Disqualification Event”** shall be deemed to have occurred if, at any time whilst any of the Notes are outstanding:

- (i) the Issuer and/or the Group is subject to regulatory supervision by the Relevant Supervisory Authority, and
- (ii) the Issuer and/or the Group is no longer permitted to treat the proceeds of the Notes as fully eligible:
 - (x) for the purpose of the determination of its solvency margin or capital adequacy levels under the Applicable Supervisory Regulations; or
 - (y) as at least Tier 2 Capital for the purposes of the determination of its regulatory capital under the Applicable Supervisory Regulations,

except, in each case, as a result of the application of the limits on inclusion (on a solo or group-level basis) of such Notes in, respectively, its solvency margin or own funds regulatory capital (or, if different, whatever terminology then employed by the Applicable Supervisory Regulations), as the case may be.

“Clean-up Call” has the meaning ascribed to it in Condition 6.7 (*Clean-up Redemption*).

“Code” has the meaning ascribed to it in Condition 5.3 (*Payments Subject to Fiscal Laws*).

“Collective Decisions” has the meaning ascribed to it in Condition 12 (*Noteholders’ Meeting*).

“Compulsory Interest Payment Date” means each Interest Payment Date prior to which, at any time during a period of six (6) months prior to such Interest Payment Date, a Compulsory Interest Payment Event occurred; provided, however, that this Interest Payment Date is not a Mandatory Interest Deferral Date.

“Compulsory Interest Payment Event” means any of the following events:

- (i) a declaration or payment of a dividend by the Issuer; or
- (ii) a payment of any nature by the Issuer on any Equity Securities (other than a dividend or other distribution paid on the ordinary shares of the Issuer consisting solely of newly-

issued ordinary shares or a payment on any Equity Securities that was required under the terms of such Equity Securities).

“Conditions to Redemption, Purchase and Replacement” means the conditions to redemption, purchase and replacement set out in Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*).

“Conditions to Settlement” means the conditions that are satisfied on any day with respect to any payment of Arrears of Interest, if (i) the Issuer has obtained the Prior Approval of the Relevant Supervisory Authority (to the extent such consent is then required by Applicable Supervisory Regulations), and (ii) such day is not a Mandatory Interest Deferral Date.

“Deeply Subordinated Obligations” means any deeply subordinated obligations (*titres subordonnés de dernier rang*) or other instruments issued by the Issuer, the subordination provisions of which are governed by the provisions of Article L.228-97 of the French *Code de commerce*, and which rank, or are expressed to rank, *pari passu* among themselves and:

- (a) subordinated to all present and future Unsubordinated Obligations of the Issuer (including depositors and creditors whose claims arise under contracts entered into for the purposes of any liquidation), Senior Subordinated Obligations of the Issuer, Ordinarily Subordinated Obligations of the Issuer and any *titres participatifs* issued by, and *prêts participatifs* granted to, the Issuer, and other obligations expressed to rank senior to Deeply Subordinated Obligations including 1st Ranking Senior Subordinated Obligations of the Issuer, if any; and
- (b) senior to any payments to holders of Equity Securities, or any other obligation expressed to rank junior to the Notes.

For the avoidance of doubt, on the Issue Date, the following securities issued by the Issuer are Deeply Subordinated Obligations outstanding:

- U.S.\$749,800,000 Perpetual Fixed Rate Resettable Restricted Tier 1 Notes with a first call date on 13 March 2029 (ISIN: FR0013322823) issued in two tranches, and
- €500,000,000 Perpetual Fixed Rate Resettable Restricted Tier 1 Notes with a first call date on 20 June 2034 (ISIN: FR001400UM87).

“Equity Securities” means (a) the ordinary shares (*actions ordinaires*) of the Issuer and (b) any other class of the Issuer's share capital (including preference shares (*actions de préférence*) as the case may be).

“Euro”, “EUR” or “€” means the currency introduced at the start of the third stage of European economic and monetary union pursuant to the Treaty establishing the European Community, as amended.

“Existing Subordinated Notes” means any note of any of the issues listed below, provided that if such notes would allow (as result of an amendment or otherwise) the Issuer to undertake any subordinated liability ranking senior to such notes, then such notes would, from the effective date of such amendment, be deemed to no longer constitute Existing Subordinated Notes:

- €250,000,000 Fixed to Reset Rate Undated Subordinated Notes with first call date on 1 October 2025 (of which €63,600,000 remain outstanding) (ISIN: FR0012199123),
- €250,000,000 Fixed to Reset Rate Subordinated Notes due 2047 (ISIN:

FR0012770063),

- €600,000,000 Fixed to Reset Rate Subordinated Notes due 2046 (ISIN: FR0013067196), and
- €500,000,000 Fixed Resetable Subordinated Notes due 2048 (ISIN: FR0013179314).

“Existing Subordinated Notes Redemption Date” means the first day upon which no Existing Subordinated Note remains outstanding.

“First Call Date” means 10 March 2035.

“Fixed Rate Day Count Fraction” means Actual/Actual (ICMA).

“Fixed Interest Amount” means the amount of interest payable on the Notes in respect of each Fixed Interest Period as described in Condition 4.1 (*Fixed Rate Interest Period*).

“Fixed Interest Payment Date” means 10 September in each year, commencing on 10 September 2026, to (and including) the Reset Date.

“Fixed Interest Period” means the period from (and including) a Fixed Interest Payment Date (or, if none, the Issue Date) to (but excluding) the next (or first) Fixed Interest Payment Date.

“Fixed Rate of Interest” means 4.522 per cent. *per annum*.

“Floating Interest Amount” means the amount of interest payable on the Notes in respect of each Floating Interest Period as described in Condition 4.2 (*Floating Rate Interest Period*).

“Floating Interest Determination Date” means the second T2 Business Day prior to the commencement of each Floating Interest Period.

“Floating Interest Payment Date” means 10 March, 10 June, 10 September and 10 December in each year thereafter commencing on 10 December 2035 to (and including) the Redemption Date, in each case, subject to adjustment in accordance with the Modified Following Business Day Convention.

“Floating Interest Period” means the period from (and including) a Floating Interest Payment Date (or, if none, the Reset Date) to (but excluding) the next (or first) Floating Interest Payment Date.

“Floating Rate Day Count Fraction” means Actual/360.

“Floating Rate of Interest” has the meaning ascribed to it in Condition 4.2 (*Floating Rate Interest Period*).

“Further Notes” means notes further issued to be assimilated and form a single series (*assimilées*) with the Notes in accordance with Condition 13 (*Further Issues*).

“General Assembly” has the meaning ascribed to it in Condition 12.5 (*Collective Decisions*).

“Gross-Up Event” has the meaning ascribed to it in Condition 6.3(b) (*Redemption for Tax Reasons*).

“Group” means the group of insurance undertakings of the Issuer as construed under the

Applicable Supervisory Regulations. At the date hereof, the Group includes the Issuer and its subsidiary undertakings and participating interests as consolidated in accordance with IFRS.

“Independent Adviser” means an independent financial institution of international repute or an independent financial adviser with appropriate expertise appointed by the Issuer at its own expenses under Condition 4.6 (*Benchmark Discontinuation*).

“Independent Agent” means an investment bank, or a syndicate of investment banks, of international repute and with a leading franchise in the underwriting and distribution of capital instruments for French and international financial institutions.

“Insolvent Insurance Affiliate Winding-up” means:

- (i) the winding-up (or the equivalent under the law of any relevant jurisdiction) of any Insurance Undertaking or Reinsurance Undertaking within the Group; or
- (ii) the appointment of an administrator of any Insurance Undertaking or Reinsurance Undertaking within the Group,

in each case, where the Issuer has determined, acting reasonably and in consultation with the Relevant Supervisory Authority, that the assets of that Insurance Undertaking or Reinsurance Undertaking within the Group may or will not be sufficient to meet all claims of the policyholders pursuant to a contract of insurance or reinsurance of that Insurance Undertaking or Reinsurance Undertaking which is subject to a winding-up or administration process (and for these purposes, the claims of policyholders pursuant to a contract of insurance or reinsurance shall include all amounts to which policyholders are entitled under applicable legislation or rules relating to the winding-up of Insurance Undertakings or Reinsurance Undertakings that reflect any right to receive or expectation of receiving benefits which policyholders may have).

“Insurance Undertaking” has the meaning ascribed to it in the Solvency II Directive.

“Interest Payment” means in respect of an interest payment on an Interest Payment Date, the amount of interest payable for the relevant Interest Period in accordance with Condition 4 (*Interest*).

“Interest Payment Date” means a Fixed Interest Payment Date or a Floating Interest Payment Date, as the case may be.

“Interest Period” means a Fixed Interest Period or a Floating Interest Period, as the case may be.

“IRRD” means Directive (EU) 2025/1 of the European Parliament and of the Council of 27 November 2024 establishing a framework for the recovery and resolution of insurance and reinsurance undertakings, as amended, and any legislative acts of the European Union enacted in relation thereto and French legislation implementing the same.

“Issue Date” means 10 September 2025.

“Mandatory Interest Deferral Date” means each Interest Payment Date in respect of which, notwithstanding the occurrence of a Compulsory Interest Payment Event, the Fiscal Agent has received written notice from the Issuer confirming that a Regulatory Deficiency has occurred and such Regulatory Deficiency is continuing on such Interest Payment Date, or such interest payment (and, if relevant, any Arrears of Interest) would itself cause a Regulatory Deficiency provided, however, that the relevant Interest Payment Date will not be a Mandatory Interest

Deferral Date in relation to such Interest Payment (and, if relevant, any Arrears of Interest) (or such part thereof) if, cumulatively:

- (i) the Relevant Supervisory Authority has exceptionally waived the deferral of such Interest Payment (and, if relevant, any Arrears of Interest) (to the extent the Relevant Supervisory Authority can give such waiver in accordance with the Applicable Supervisory Regulations);
- (ii) paying the Interest Payment (and, if relevant, any Arrears of Interest) does not further weaken the solvency position of the Issuer as determined in accordance with the Applicable Supervisory Regulations; and
- (iii) the Minimum Capital Requirement will be complied with immediately after the Interest Payment (and, if relevant, any Arrears of Interest) is made.

“Margin” means 2.800 per cent. *per annum*.

“Masse” has the meaning ascribed to it in Condition 12.1 (*The Masse*).

“Minimum Capital Requirement” has the meaning ascribed to it in the Solvency II Directive.

“Modified Following Business Day Convention” means the next day which is a Business Day unless it would thereby fall into the next calendar month, in which event such Floating Interest Payment Date shall be brought forward to the immediately preceding Business Day.

“Noteholder” means the person whose name appears in the account of the relevant Account Holder as being entitled to such Notes.

“Notes Disqualified as Own Funds” has the meaning ascribed to it in Condition 3 (*Status of the Notes*).

“Notes Disqualified as Tier 2 Own Funds” has the meaning ascribed to it in Condition 3 (*Status of the Notes*).

“Notes Disqualified as Tier 2 Own Funds but Qualified as Tier 3 Own Funds” has the meaning ascribed to it in Condition 3 (*Status of the Notes*).

“Optional Interest Payment Date” means an Interest Payment Date which is not otherwise a Mandatory Interest Deferral Date or a Compulsory Interest Payment Date.

“Ordinarily Subordinated Obligations” means any subordinated obligations or other instruments issued by the Issuer which constitute direct, unconditional, unsecured and ordinarily subordinated obligations of the Issuer and which rank, or are expressed to rank, (i) equally and rateably with any other existing or future Ordinarily Subordinated Obligations, (ii) in priority to all present and future *titres participatifs* issued by the Issuer, *prêts participatifs* granted to the Issuer and Deeply Subordinated Obligations of the Issuer but (iii) behind Unsubordinated Obligations, Senior Subordinated Obligations and 1st Ranking Senior Subordinated Obligations. For the avoidance of doubt, on the Issue Date, the Issuer's €250,000,000 Fixed to Reset Rate Undated Subordinated Notes with first call date on 1 October 2025 (of which €63,600,000 remain outstanding) (ISIN: FR0012199123), €250,000,000 Fixed to Reset Rate Subordinated Notes due 2047 (ISIN: FR0012770063), €600,000,000 Fixed to Reset Rate Subordinated Notes due 2046 (ISIN: FR0013067196), €500,000,000 Fixed Resettable Subordinated Notes due 2048 (ISIN: FR0013179314), and the €300,000,000 Fixed to Reset Rate Subordinated Notes due 2051 (ISIN: FR0013535101) are Ordinarily Subordinated Obligations for the purpose of these

Conditions.

“Own Funds Items” means the amount of eligible “own fund-items” regulatory capital (or any equivalent terminology employed by the Applicable Supervisory Regulations) of the Issuer or the Group.

“Principal Amount” means the principal amount of each Note as at the Issue Date being EUR 100,000.

“Prior Approval of the Relevant Supervisory Authority” means the prior written approval of the Relevant Supervisory Authority, if such approval is required at the time under any Applicable Supervisory Regulations and provided that such approval has not been withdrawn by the date set for redemption, purchase, exchange, variation or payment, as the case may be.

“Rate of Interest” means the Fixed Rate of Interest or the Floating Rate of Interest, as the case may be.

“Rating Event” means at any time, as a consequence of a change in, or clarification to, the rating methodology (or the interpretation thereof) on or after the Issue Date of at least one (1) rating agency among Standard & Poor's Rating Services, a division of The McGraw Hill Companies, Inc., Moody's Investors Services, Fitch Ratings and A.M. Best Company, the equity content previously assigned by such rating agency to the Notes is, in the reasonable opinion of the Issuer, materially reduced when compared to the equity content assigned by such rating agency at or around the Issue Date or (if any further Tranche(s) of the Notes are issued pursuant to Condition 13 (*Further Issues*) (and consolidated to form a single series with the Notes) the issue date of the last Tranche of the Notes. In this definition, equity content may also refer to any other nomenclature that the relevant rating agency may then use to describe the contribution of the Notes to capital adequacy in the applicable rating methodology.

“Redemption Alignment Event” has the meaning ascribed to it in Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*).

“Redemption Date” means the effective date of redemption of the Notes.

“Reference Banks” means the principal Euro-zone office of four major banks in the Euro-zone interbank market, in each case selected by the Calculation Agent (after prior consultation with the Issuer).

“Reference Rate” means 3-month EURIBOR.

“Regulatory Deficiency” means:

- (i) the own funds regulatory capital (or, if different, whatever terminology then employed by the Applicable Supervisory Regulations) of the Issuer or of the Group is not sufficient to cover the capital requirement (or, if different, whatever terminology then employed by the Applicable Supervisory Regulations) of the Issuer or its Group or any applicable capital requirements for internationally active insurance or reinsurance groups (or, if different, whatever terminology is employed to denote such requirement by the then Applicable Supervisory Regulations), whichever occurs earlier. For the avoidance of doubt, a Regulatory Deficiency would be deemed to have occurred when the Issuer and/or the Group has determined, based on information available at the relevant time, that it fails to meet the Solvency Capital Requirement and/or Minimum Capital Requirement (or, if different, whatever terminology is employed to denote such requirement by the then Applicable Supervisory Regulations) whichever occurs earlier;

or

- (ii) the Relevant Supervisory Authority has notified the Issuer that it has determined, in view of the financial condition of the Issuer or its Group, that in accordance with Applicable Supervisory Regulations at such time, the Issuer must take specified action in relation to payments under the Notes; or
- (iii) the Issuer admits it is or is declared unable to meet its liabilities as they fall due with its immediately disposable assets (*cessation des paiements*),

in each case without taking into account any Prior Approval of the Relevant Supervisory Authority being granted on an exceptional basis with respect to the payment of interest and/or Arrears of Interest on, or the redemption or purchase of, the Notes.

“Regulated Entity” has the meaning ascribed to it in Condition 15 (*Acknowledgement of Bail-In and Write-Down or Conversion Powers*).

“Reinsurance Undertaking” has the meaning ascribed to it in the Solvency II Directive.

“Relevant Nominating Body” means, in respect of a benchmark or screen rate, as applicable:

- (i) the European Central Bank or the central bank for the currency to which the benchmark or screen rate, as applicable, relates, or any central bank or other supervisory authority which is responsible for supervising the administrator of the benchmark or screen rate, as applicable; or
- (ii) any working group or committee sponsored by, chaired or co-chaired by or constituted at the request of (a) the central bank for the currency to which the benchmark or screen rate, as applicable, relates, (b) any central bank or other supervisory authority which is responsible for supervising the administrator of the benchmark or screen rate, as applicable, (c) a group of the aforementioned central banks or other supervisory authorities or (d) the Financial Stability Board or any part thereof.

“Relevant Resolution Authority” has the meaning ascribed to it in Condition 15 (*Acknowledgement of Bail-In and Write-Down or Conversion Powers*).

“Relevant Supervisory Authority” means any relevant regulator having jurisdiction over the Issuer and/or the Group, in the event that the Issuer and/or the Group is required to comply with certain applicable solvency margins, capital adequacy regulations, capital requirements or any other regulatory capital rules. As at the Issue Date, the Relevant Supervisory Authority is the *Autorité de contrôle prudentiel et de résolution* (“ACPR”).

“Representative” has the meaning ascribed to it in Condition 12.2 (*Legal Personality*).

“Reset Date” means 10 September 2035.

“Scheduled Maturity Date” means the Interest Payment Date falling on or nearest to 10 September 2055, if the Conditions to Redemption, Purchase and Replacement are satisfied, or otherwise as soon as the Conditions to Redemption, Purchase and Replacement are satisfied.

“Screen Page” means Bloomberg EUR003M or such other information service which is the successor to Bloomberg EUR003M.

“Senior Notes” means notes which are direct, unconditional, unsubordinated and unsecured obligations of the Issuer and rank (save for certain obligations required to be preferred by law)

equally with all other present and future unsecured and unsubordinated obligations of the Issuer, from time to time outstanding.

“Senior Subordinated Obligations” means any present or future direct, unconditional, unsecured and subordinated obligations of the Issuer and which rank and will at all times rank (i) equally and rateably with any other existing or future Senior Subordinated Obligations, (ii) in priority to present and future Deeply Subordinated Obligations, *prêts participatifs* granted to, and *titres participatifs* issued by the Issuer, Ordinarily Subordinated Obligations, but (iii) behind 1st Ranking Senior Subordinated Obligations and Unsubordinated Obligations.

“Set-Off Rights” has the meaning ascribed to it in Condition 14 (*Waiver of Set-off*).

“Solvency II Directive” means Directive 2009/138/EC of the European Union of 25 November 2009 on the taking-up and pursuit of the business of insurance and reinsurance (Solvency II), as amended, which has been transposed under French law by the ordinance (*ordonnance*) no. 2015-378 dated 2 April 2015 completed by the decree (*décret*) no. 2015-513 dated 7 May 2015 and the order (*arrêté*) of the same date (or, if the Issuer becomes domiciled in a jurisdiction other than France, which has been or must be transposed under the law of its jurisdiction by the relevant member state of the European Economic Area pursuant to Article 309 of Directive 2009/138/EC, the further legislative acts of the European Union enacted in relation thereto and the French legislation implementing the same).

“Solvency II Regulation” means Commission Delegated Regulation (EU) 2015/35 of 10 October 2014, as amended.

“Solvency Capital Requirement” has the meaning ascribed to it in the Solvency II Directive. For the avoidance of doubt, the Solvency Capital Requirement as used for the purpose of these Conditions is the Solvency Capital Requirement that is required to be covered pursuant to the Applicable Supervisory Regulations.

“Successor Rate” means a successor to or replacement of the Reference Rate (or component part thereof) which is formally recommended by any Relevant Nominating Body. If, following a Benchmark Event, more than one successor or replacement rates are recommended by any Relevant Nominating Body, the Independent Adviser will determine, among those successor or replacement rates, the one which is the most appropriate, taking into consideration, without limitation, the particular features of the relevant Notes and the nature of the Issuer.

“T2 Business Day” means any day on which T2 System is operating.

“T2 System” means the real-time gross settlement system operated by the Eurosystem or any successor or replacement for that system.

“Tax Deductibility Event” has the meaning ascribed to it in Condition 6.3 (*Redemption for Tax Reasons*).

“Tier 2 Capital” has the meaning given to such term in the Applicable Supervisory Regulations from time to time (or, if different, whatever terminology employed by the Applicable Supervisory Regulations).

“Tier 2 Own Funds” means subordinated loans or notes, ordinary shares or any other share capital of any class which constitute Tier 2 Capital for the purposes of the Issuer or the Group.

“Unsubordinated Obligations” means any direct, unconditional, unsubordinated and unsecured obligations of the Issuer and which rank, or are expressed to rank, (i) equally and

rateably with any other existing or future Unsubordinated Obligations and (ii) in priority to present and future Deeply Subordinated Obligations, *prêts participatifs* granted to, *titres participatifs* issued by the Issuer, Ordinarily Subordinated Obligations, Senior Subordinated Obligations and 1st Ranking Senior Subordinated Obligations. For the avoidance of doubt, the Unsubordinated Obligations include but are not limited to the claims of holders of Senior Notes and of the policyholders of the Issuer.

“Withholding Tax Event” has the meaning ascribed to it in Condition 6.3 (*Redemption for Tax Reasons*).

“Written Decision” has the meaning ascribed to it in Condition 12.5 (*Collective Decisions*).

2. DENOMINATION, FORM AND TITLE OF THE NOTES

The Notes will be issued on the Issue Date in dematerialised bearer form (*au porteur*) in the denomination of EUR 100,000 per Note. Title to the Notes will be evidenced in accordance with Article L.211-3 *et seq.* and R.211-1 *et seq.* of the French *Code monétaire et financier* by book-entries (*inscription en compte*) in the books of Account Holders. No physical document of title (including *certificats représentatifs* pursuant to Article R.211-7 of the French *Code monétaire et financier*) will be issued in respect of the Notes.

The Notes will, upon issue, be inscribed in the books of Euroclear France, which shall credit the accounts of the Account Holders.

Title to the Notes shall be evidenced by entries in the books of Account Holders and will pass upon, and transfer of Notes may only be effected through, registration of the transfer in such books.

3. STATUS OF THE NOTES

- (a) The principal and interest (including any outstanding Arrears of Interest) on the Notes constitute direct, unconditional, unsecured and Ordinarily Subordinated Obligations of the Issuer and the Notes rank and will rank *pari passu* without any preference among themselves and with other Ordinarily Subordinated Obligations of the Issuer outstanding from time to time, including, to the extent required by the Applicable Supervisory Regulations (and in particular the last paragraph of Article 38(1) of the IRRD, as finally implemented under French law) for so long as any such Ordinary Subordinated Obligations continue to constitute (or would constitute but for any applicable limitation on the amount of such capital) fully or partly Tier 2 Own Funds of the Issuer and/or the Group under the then Applicable Supervisory Regulations.

Subject to applicable law, in the event of the voluntary or judicial liquidation (*liquidation amiable* or *liquidation judiciaire*) of the Issuer, bankruptcy proceedings or any other similar proceedings affecting the Issuer or if the Issuer is liquidated for any other reason, the rights of Noteholders to payment in respect of principal and interest (including any Arrear of Interest) under the Notes rank:

- (i) subordinated to the full payment of:
- (A) any Unsubordinated Obligations of the Issuer (including depositors and creditors whose claims arise under contracts entered into for the purposes of any liquidation),
- (B) any 1st Ranking Senior Subordinated Obligations of the Issuer,

(C) any Senior Subordinated Obligations of the Issuer,

(D) any other obligations expressed to rank senior to Ordinarily Subordinated Obligations, if any,

in each case outstanding from time to time;

(ii) *pari passu* without any preference among themselves and *pari passu* with any other Ordinarily Subordinated Obligations of the Issuer outstanding from time to time; and

(iii) prior to any payments to holders of any *titres participatifs* issued by the Issuer, any *prêts participatifs* granted to the Issuer, Deeply Subordinated Obligations, Equity Securities, or any other obligation expressed to rank junior to the Notes in each case outstanding from time to time.

(b) There will be no negative pledge in respect of the Notes.

(c) Pursuant to Article L.327-2 of the French *Code des assurances*, a lien (*privilège*) over the assets of the Issuer is granted for the benefit of the Issuer's policyholders. Noteholders, even if they are policyholders of the Issuer, do not have the benefit of such lien in relation to any amounts which may be due to them under the Notes.

(d) The subordination provisions of the Notes are governed by Article L.228-97 of the French *Code de commerce*.

In the event of incomplete payment of creditors ranking or expressed to rank senior to holders of the Notes (in the context of voluntary or judicial liquidation (*liquidation amiable* or *liquidation judiciaire*) of the Issuer, bankruptcy proceedings or any other similar proceedings affecting the Issuer), the obligations of the Issuer in connection with the Notes will be terminated. The holders of the Notes shall take all steps necessary for the orderly accomplishment of any insolvency proceedings or voluntary liquidation.

Dynamic ranking in case of Notes disqualified as Tier 2 Own Funds

Subparagraphs 1 and 2.1 below shall apply only to the extent, and for so long as, required by, Applicable Supervisory Regulations and subparagraph 2.2 below shall apply only to the extent, and for so long as, permitted by, the Applicable Supervisory Regulations (and in particular the last paragraph of Article 38(1) of the IRRD, as finally implemented under French law).

1. Prior to the Existing Subordinated Notes Redemption Date:

Should the Notes no longer be treated as Tier 2 Own Funds (“**Notes Disqualified as Tier 2 Own Funds**”), and for so long as they constitute Notes Disqualified as Tier 2 Own Funds, they will cease to constitute Ordinarily Subordinated Obligations and will automatically constitute Senior Notes without the need for any action from the Issuer and without consultation of the Noteholders.

2. From (and including) the Existing Subordinated Notes Redemption Date

2.1. Should the Notes no longer be treated as own funds regulatory capital under the Applicable Supervisory Regulations (“**Notes Disqualified as Own Funds**”), and for so long as they constitute Notes Disqualified as Own Funds, they will cease to constitute Ordinarily Subordinated Obligations, and will automatically constitute 1st Ranking Senior Subordinated Obligations without the need for any action from the Issuer and without

consultation of the Noteholders. In all cases and notwithstanding the application of paragraph 1 above, if the Notes are disqualified as Tier 2 Own Funds prior to the Existing Subordinated Notes Redemption Date but the Notes are still outstanding on the Existing Subordinated Notes Redemption Date, then they will constitute 1st Ranking Senior Subordinated Obligations.

The 1st Ranking Senior Subordinated Obligations shall also rank in priority to Ordinarily Subordinated Obligations, any *titres participatifs* issued by the Issuer, any *prêts participatifs* granted to the Issuer, Deeply Subordinated Obligations and to any class of Equity Securities.

- 2.2. Should the Notes no longer be treated as Tier 2 Own Funds but be treated as tier 3 own funds regulatory capital under the Applicable Supervisory Regulations (“**Notes Disqualified as Tier 2 Own Funds but Qualified as Tier 3 Own Funds**”), and for so long as they constitute Notes Disqualified as Tier 2 Own Funds but Qualified as Tier 3 Own Funds, they will cease to constitute Ordinarily Subordinated Obligations, and will automatically constitute Senior Subordinated Obligations without the need for any action from the Issuer and without consultation of the Noteholders.

The Senior Subordinated Obligations are direct, unconditional, unsecured and senior subordinated obligations of the Issuer and rank *pari passu* without any preference among themselves and *pari passu* with any other existing or future direct, unconditional, unsecured and Senior Subordinated Obligations, and shall be subordinated to:

- all direct, unconditional, unsecured and unsubordinated obligations of the Issuer (including any Senior Notes); and
- subordinated obligations expressed to rank senior to Senior Subordinated Obligations, if any,

in each case outstanding from time to time, but shall rank in priority to any Ordinarily Subordinated Obligations, any existing or future direct, unconditional, unsecured and subordinated obligations of the Issuer that rank or are expressed to rank *pari passu* with the Ordinarily Subordinated Obligations, any *prêts participatifs* granted to the Issuer, any *titres participatifs* issued by the Issuer, any Deeply Subordinated Obligations and to any class of Equity Securities.

4. INTEREST

4.1 Fixed Rate Interest Period

- (a) Subject to Condition 4.4 (*Interest Deferral*), the Notes bear interest from (and including) the Issue Date to (but excluding) the Reset Date at a rate equal to the Fixed Rate of Interest payable annually in arrear on each Fixed Interest Payment Date. The Fixed Interest Amount payable on each Fixed Interest Payment Date shall be calculated by applying the Fixed Rate of Interest to the Principal Amount, and rounding the resultant figure to the nearest Euro cent, with half of a Euro cent being rounded upwards.
- (b) Subject to Condition 4.4 (*Interest Deferral*), the Notes will cease to bear interest from (and including) the Redemption Date if and when such Redemption Date falls in a Fixed Rate Interest Period, unless payment of the Principal Amount is improperly withheld or refused on such date or unless default is otherwise made in respect of the payment. In such event and subject as provided herein, the Notes will continue to bear interest at the Fixed Rate of Interest on their remaining unpaid amount until the day on which all sums due in respect of the Notes up to (but excluding) that day are received by or on behalf

of the relevant Noteholder.

- (c) If interest is required to be calculated for a period other than a Fixed Interest Period, such interest shall be calculated by applying the Fixed Rate of Interest to the Principal Amount, multiplying the resultant figure by the Fixed Rate Day Count Fraction, and rounding the resultant figure to the nearest Euro cent, with half of a Euro cent being rounded upwards.

4.2 Floating Rate Interest Period

- (a) Subject to Condition 4.4 (*Interest Deferral*), the Notes bear interest from (and including) the Reset Date to (but excluding) the Redemption Date at a rate equal to the Floating Rate of Interest (as defined below) payable quarterly in arrear on each Floating Interest Payment Date.
- (b) If a Floating Interest Payment Date would otherwise fall on a date which is not a Business Day, it will be adjusted in accordance with the Modified Following Business Day Convention.
- (c) Subject to Condition 4.4 (*Interest Deferral*), the rate of interest on each Floating Interest Payment Date will, subject as provided below, be either:
 - (i) the offered quotation; or
 - (ii) the arithmetic mean (rounded if necessary to the fifth decimal place, with 0.000005 being rounded upwards) of the offered quotations,

(expressed as a percentage rate *per annum*) for the Reference Rate which appears or appear, as the case may be, on the Screen Page at approximately 11.00 a.m. (Brussels time) on the relevant Floating Interest Determination Date plus the Margin, all as determined by the Calculation Agent (the “**Floating Rate of Interest**”).

If five or more of such offered quotations are available on the Screen Page, the highest (or, if there is more than one such highest quotation, one only of such quotations) and the lowest (or, if there is more than one such lowest quotation, one only of such quotations) shall be disregarded by the Calculation Agent for the purpose of determining the arithmetic mean (rounded as provided above) of such offered quotations.

If the Screen Page is not available or if, in the case of (i) above, no such offered quotation appears or, in the case of (ii) above, fewer than three offered quotations appear, the Calculation Agent shall request the principal office in the Euro-zone of each of the Reference Banks to provide the Calculation Agent with its offered quotation (expressed as a percentage rate *per annum*) for the Reference Rate at approximately 11.00 a.m. (Brussels time) on the relevant Floating Interest Determination Date.

If two or more of the Reference Banks provide the Calculation Agent with offered quotations, the Floating Rate of Interest for the Floating Interest Period shall be the arithmetic mean (rounded if necessary to the fifth decimal place with 0.000005 being rounded upwards) of the offered quotations plus the Margin, all as determined by the Calculation Agent.

If on any Floating Interest Determination Date one only or none of the Reference Banks provides the Calculation Agent with an offered quotation as provided in the preceding paragraph, the Floating Rate of Interest for the relevant Floating Interest Period shall be

the rate *per annum* which the Calculation Agent determines as being the arithmetic mean (rounded if necessary to the fifth decimal place, with 0.000005 being rounded upwards) of the rates, as communicated to (and at the request of) the Calculation Agent by the Reference Banks or any two or more of them, at which such banks were offered, at approximately 11.00 a.m. (Brussels time) on the relevant Floating Interest Determination Date, deposits in Euro for a period of 3 months by leading banks in the Euro-zone inter-bank market plus the Margin or, if fewer than two of the Reference Banks provide the Calculation Agent with offered rates, the offered rate for deposits in Euro for a period of 3 months, or the arithmetic mean (rounded as provided above) of the offered rates for deposits in Euro for a period of 3 months, at which, at approximately 11.00 a.m. (Brussels time) on the relevant Floating Interest Determination Date, any one or more banks (which bank or banks is or are in the opinion of the Issuer suitable for the purpose) informs the Calculation Agent it is quoting to leading banks in the Euro-zone interbank market, as appropriate, plus the Margin, provided that, if the Floating Rate of Interest cannot be determined in accordance with the foregoing provisions of this paragraph, the Floating Rate of Interest shall be determined as at the last preceding Floating Interest Determination Date.

(d) Determination of Floating Rate of Interest and calculation of Floating Interest Amounts

The Calculation Agent will at or as soon as practicable after each time at which the Floating Rate of Interest is to be determined, determine the Floating Rate of Interest for the relevant Floating Interest Period.

The Calculation Agent will calculate the amount of interest payable on each Note for the relevant Floating Interest Period (the “**Floating Interest Amount**”) by applying the Floating Rate of Interest to the Principal Amount and multiplying the resultant figure by the Floating Rate Day Count Fraction, and rounding the resultant figure to the nearest Euro cent, with half of a Euro cent being rounded upwards.

(e) Notification of Floating Rate of Interest and Floating Interest Amounts

The Calculation Agent will cause the Reference Rate, the Floating Rate of Interest, each Floating Interest Amount for each Floating Interest Period and the relevant Floating Interest Payment Date to be notified to the Issuer and, if required, to the Luxembourg Stock Exchange and any other stock exchange on which the Notes are for the time being listed (by no later than the first day of each Floating Interest Period) and notice thereof to be given to the Noteholders in accordance with Condition 10 (*Notices*) as soon as possible after their determination but in no event later than the fourth Business Day thereafter. Where any Floating Interest Payment Date is subject to adjustment pursuant to Condition 4.2(b), each Floating Interest Amount and Floating Interest Payment Date so notified may subsequently be amended (or appropriate alternative arrangements made by way of adjustment) without prior notice in the event of an extension or shortening of the Floating Interest Period. Any such amendment will be promptly notified to the Issuer and to the Luxembourg Stock Exchange and any other stock exchange on which the Notes are for the time being listed and to the Noteholders in accordance with Condition 10 (*Notices*). For the purposes of this paragraph, the expression “**Business Day**” means a day (other than a Saturday or a Sunday) on which banks and foreign exchange markets are open for business in Luxembourg and Paris.

- (f) Subject to Condition 4.4 (*Interest Deferral*), the Notes will cease to bear interest from (and including) the Redemption Date if and when such Redemption Date falls in a Floating Rate Interest Period, unless payment of the Principal Amount is improperly withheld or refused on such date or unless default is otherwise made in respect of the payment. In such event and subject as provided herein, the Notes will continue to bear interest at the Floating Rate of Interest on their remaining unpaid amount until the day on which all sums due in respect of the Notes up to (but excluding) that day are received by or on behalf of the relevant Noteholder.

4.3 Calculation Agent

- (a) The Agency Agreement provides that the Issuer may at any time terminate the appointment of the Calculation Agent and appoint a substitute Calculation Agent provided that so long as any of the Notes remain outstanding there shall at all times be a Calculation Agent for the purposes of the Notes having a specified office in a major European city. In the event of the appointed office of any bank being unable or unwilling to continue to act as the Calculation Agent or failing duly to determine the Reference Rate and the Floating Rate of Interest for any Floating Interest Period, the Issuer shall appoint the European office of another leading bank engaged in the Paris, London or Luxembourg interbank market to act in its place. The Calculation Agent may not resign its duties or be removed without a successor having been appointed. The Calculation Agent shall act as an independent expert and not as agent for the Issuer or the Noteholders.

- (b) Notifications etc. to be final and binding

All notifications, opinions, determinations, certificates, calculations, quotations and decisions given, expressed, made or obtained for the purposes of the provisions of this Condition 4 (*Interest*) by the Calculation Agent will (in the absence of default, bad faith or manifest error) be final and binding on the Issuer and all Noteholders and (in the absence of default, bad faith or manifest error) no liability to the Issuer or the Noteholders shall attach to the Calculation Agent in connection with the exercise or non-exercise by it of its powers, duties and discretions under this Condition 4 (*Interest*).

4.4 Interest Deferral

- (a) Optional Deferral of Interest Payments

Subject to Condition 4.4(b) (*Mandatory Deferral of Interest*), the Issuer may, at its option, elect to defer in full or in part the payment of interest otherwise due and payable on any Optional Interest Payment Date in respect of the Interest Period ending on such date, whereupon the Issuer shall not have any obligation to pay any interest on an Optional Interest Payment Date and such non-payment shall not constitute a default or event of default by the Issuer under the Notes or for any other purpose and shall not give Noteholders any right to accelerate the Notes.

Any interest in respect of the Notes which has not been paid on an Optional Interest Payment Date will be deferred and shall constitute “**Optional Deferred Interest**” and shall be payable as outlined below. Noteholders will not receive any additional interest or compensation for the optional deferral of payment. In particular, the resulting Arrears of Interest will not bear interest.

- (b) Mandatory Deferral of Interest

On any Mandatory Interest Deferral Date, the Issuer will be obliged to defer payment of all (but not some only) the interest accrued (and, if relevant, any Arrears of Interest) in respect of the Notes during the relevant Interest Period and any such non-payment shall not constitute a default or event of default by the Issuer for any purpose and shall not give Noteholders any right to accelerate the Notes.

Any interest in respect of the Notes which has not been paid on a Mandatory Interest Deferral Date will be deferred and shall constitute “**Mandatory Deferred Interest**” and shall constitute, together with Optional Deferred Interest, “**Arrears of Interest**” and shall be payable as outlined below. Noteholders will not receive any additional interest or compensation for the compulsory deferral of payment. In particular, the resulting Arrears of Interest will not bear interest.

(c) Arrears of Interest

All Arrears of Interest may, subject to the fulfilment of the Conditions to Settlement, at the option of the Issuer, be paid in whole or in part at any time but all Arrears of Interest in respect of all Notes for the time being outstanding shall become due in full on whichever is the earliest of:

- (i) the next Interest Payment Date which is a Compulsory Interest Payment Date;
- (ii) the date of any redemption of the Notes in accordance with the provisions relating to redemption of the Notes; or
- (iii) the date upon which a judgment is made for the voluntary or judicial liquidation (*liquidation amiable ou liquidation judiciaire*) of the Issuer or the Issuer is liquidated for any other reason or the sale of the whole of the business (*cession totale de l'entreprise*) subsequent to the opening of a judicial recovery procedure of the Issuer.

(d) Partial Payment of Arrears of Interest

If amounts in respect of Arrears of Interest become partially payable:

- (i) Arrears of Interest accrued for any period shall not be payable until full payment has been made of all Arrears of Interest that have accrued during any earlier period; and
- (ii) the amount of Arrears of Interest payable in respect of any Note in respect of any period, shall be *pro rata* to the total amount of all unpaid Arrears of Interest accrued in respect of that period to the date of payment.

(e) Notice of Deferral and Payment of Arrears of Interest

If practicable under the circumstances, the Issuer shall give not less than five (5) nor more than thirty (30) Business Days’ prior notice to the Noteholders and the Fiscal Agent in accordance with Condition 10 (*Notices*).

- (i) of any deferral of any interest under the Notes on any Interest Payment Date, which relates to Optional Deferred Interest or Mandatory Deferred Interest; and
- (ii) of any date upon which amounts in respect of Optional Deferred Interest and/or

Mandatory Deferred Interest shall become due and payable

This notice will not be a condition to the deferral of interest. Any delay or failure by the Issuer to give such notice shall not affect the deferral described above nor constitute a default or event of default by the Issuer for any purpose and shall not give Noteholders any right to accelerate the Notes.

4.5 Compulsory Interest Payments

The Issuer shall, on each Compulsory Interest Payment Date, for so long as the compulsory interest provisions apply, pay interest in respect of the Notes accrued to that date in respect of the Interest Period ending on such Compulsory Interest Payment Date, together with all Arrears of Interest at such time.

4.6 Benchmark Discontinuation

If a Benchmark Event occurs in relation to the Reference Rate at any time when any Floating Rate of Interest (or any component part thereof) remains to be determined by reference to the Reference Rate, then the following provisions shall apply and prevail over the other fallbacks specified in paragraph (c) of Condition 4.2 (*Floating Rate Interest Period*).

(a) Independent Adviser

If the Issuer (in consultation with the Calculation Agent) determines at any time prior to, on or following any Floating Interest Determination Date, that a Benchmark Event has occurred in relation to the Reference Rate, the Issuer will as soon as reasonably practicable (and in any event prior to the next relevant Floating Interest Determination Date) use reasonable endeavours to appoint (at its own cost) an Independent Adviser, which, acting in good faith and in a commercially reasonable manner and as an independent expert in the performance of its duties, will advise the Issuer as to whether a substitute or successor rate is available for purposes of determining the Floating Rate of Interest on each Floating Interest Determination Date falling on such date or thereafter that is substantially comparable to the Reference Rate.

(b) Successor Rate or Alternative Rate

If the Independent Adviser determines in good faith and in a commercially reasonable manner (and after consultation with the Issuer) that:

- there is a Successor Rate, the Independent Adviser will advise the Issuer accordingly and such Successor Rate and the applicable Adjustment Spread shall subsequently be used in place of the Reference Rate (or component part thereof) to determine the relevant Floating Rate of Interest (or the relevant component part thereof) for all future payments of interest on the Notes (subject to the operation of this Condition 4.6 (*Benchmark Discontinuation*)).; or
- there is no Successor Rate but that there is an Alternative Rate, the Independent Adviser will advise the Issuer accordingly and then such Alternative Rate and the applicable Adjustment Spread shall subsequently be used in place of the Reference Rate (or component part thereof) to determine the relevant Floating Rate of Interest (or the relevant component part thereof) for all future payments of interest on the Notes (subject to the operation of this Condition 4.6 (*Benchmark Discontinuation*)).

(c) Benchmark Adjustments

Following the determination of the Successor Rate or the Alternative Rate (as applicable), (i) the Independent Adviser will also determine changes (if any) to the business day convention, the definition of business day, the floating rate determination date, the day count fraction, and any method for obtaining such Successor Rate or such Alternative Rate (as applicable), including any adjustment factor needed to make such Successor Rate or such Alternative Rate (as applicable) comparable to the Reference Rate (including any Adjustment Spread), in each case in a manner that is consistent with industry-accepted practices for such Successor Rate or such Alternative Rate (as applicable); (ii) references to the Reference Rate in these Conditions will be deemed to be references to the Successor Rate or the Alternative Rate (as applicable), including any alternative method for determining such rate as described in (i) above; and (iii) the Issuer will give notice as soon as reasonably practicable to the Noteholders (in accordance with Condition 10 (*Notices*)), the Calculation Agent and the Paying Agent(s) specifying the Successor Rate or the Alternative Rate (as applicable), as well as the details described in (i) above.

The determination of the Successor Rate or the Alternative Rate (as applicable) and the other matters referred to above by the Independent Adviser will (in the absence of manifest error or fraud) be final and binding on the Fiscal Agent, the Calculation Agent, the Paying Agent(s) and the Noteholders, unless the Independent Adviser or the Issuer, acting in good faith, in a commercially reasonable manner, considers at a later date that the Successor Rate or the Alternative Rate (as applicable) is no longer substantially comparable to the Reference Rate (or any component thereof) or does not constitute an industry accepted Successor Rate or Alternative Rate (as applicable), in which case the Issuer shall use reasonable endeavours to re-appoint an Independent Adviser (which may or may not be the same entity as the original Independent Adviser) for the purpose of confirming or determining the Successor Rate or the Alternative Rate (as applicable) in an identical manner as described in this Condition 4.6 (*Benchmark Discontinuation*).

For the avoidance of doubt, the Fiscal Agent shall, at the direction and expense of the Issuer, effect such consequential amendments to the Agency Agreement and these Conditions as may be required in order to give effect to this Condition 4.6 (*Benchmark Discontinuation*). No Noteholder consent shall be required in connection with effecting the Replacement Reference Rate or such other changes pursuant to this Condition 4.6 (*Benchmark Discontinuation*), including for the execution of any documents or other steps by the Paying Agent(s) (if required).

(d) Benchmark disqualification

Notwithstanding any other provision of this Condition 4.6 (*Benchmark Discontinuation*), no Successor Rate or no Alternative Rate (as applicable) will be adopted, nor will the applicable Adjustment Spread be applied, nor will any other related adjustments and/or amendments to the Terms and Conditions of the Notes be made, if and to the extent that, (as confirmed by an authorised officer of the Issuer), the same would cause the Notes to cease qualifying as at least Tier 2 Own Funds (or, if different, whatever terminology employed by the Applicable Supervisory Regulations) of the Issuer or as other equivalent of at least Tier 2 Capital of the Issuer under the Applicable Supervisory Regulations.

(e) Inability to appoint an Independent Adviser or to determine a Successor Rate or an Alternative Rate

Notwithstanding any other provision of this Condition 4.6 (*Benchmark Discontinuation*), if the Issuer is unable to appoint an Independent Adviser or if the Independent Adviser is unable to or otherwise does not advise the Issuer a Successor Rate or an Alternative Rate (as applicable) for

any Floating Interest Determination Date, no Successor Rate or Alternative Rate (as applicable) or any other successor, replacement or alternative benchmark or screen rate will be adopted and the Floating Rate for the relevant Floating Interest Period will be equal to the last Floating Rate available on the Screen Page as determined by the Calculation Agent.

In such circumstances, the Issuer will be entitled (but not obliged), at any time thereafter, to elect to re-apply the provisions of this Condition 4.6 (*Benchmark Discontinuation*), *mutatis mutandis*, on one or more occasions until a Successor Rate or an Alternative Rate (as applicable) has been determined and notified in accordance with this Condition 4.6 (*Benchmark Discontinuation*).

(f) Absence of liability

The Independent Adviser shall have no liability whatsoever to the Fiscal Agent, the Paying Agents, the Calculation Agent or any other party responsible for determining the Successor Rate or the Alternative Rate (as applicable), or the Noteholders for any determination made by it pursuant to this Condition 4.6 (*Benchmark Discontinuation*).

5. PAYMENTS

5.1 Method of Payment

Payments of principal and interest (including Arrears of Interest and/or Additional Amounts) in respect of the Notes will be made in EUR by credit or transfer to a EUR-denominated account (or any other account to which EUR may be credited or transferred). Such payments shall be made for the benefit of the Noteholders to the Account Holders and all payments validly made to such Account Holders shall be an effective discharge of the Issuer and the Fiscal Agent, as the case may be, in respect of such payment.

None of the Issuer or the Fiscal Agent shall be liable to any Noteholder or other person for any commissions, costs, losses or expenses in relation to, or resulting from, the credit or transfer of EUR, or any currency conversion or rounding effect in connection with such payment being made in EUR.

5.2 Payments on Business Days

If the due date for payment of any amount of principal, interest or other amounts in respect of any Note is not a Business Day, payment of the amount due shall not be made and credit or transfer instructions shall not be given in respect thereof until the next following Business Day and the Noteholders shall not be entitled to any interest or other sums in respect of such postponed payment.

5.3 Payments Subject to Fiscal Laws

All payments of principal and interest are subject in all cases, to (i) any fiscal or other laws and regulations applicable thereto, but without prejudice to the provisions of Condition 7 (*Taxation*) and (ii) any withholding or deduction required pursuant to an agreement described in Section 1471(b) of the U.S. Internal Revenue Code of 1986 (the “**Code**”) or otherwise imposed pursuant to Sections 1471 through 1474 of the Code, any regulations or agreements thereunder, any official interpretations thereof or any law implementing an intergovernmental approach thereto. Without prejudice to the provisions of Condition 7 (*Taxation*), any such amounts withheld or deducted will be treated as paid for all purposes under the Notes, and no Additional Amounts will be paid on the Notes with respect to any such withholding or deduction.

5.4 **Fiscal Agent, Paying Agent and Calculation Agent**

The name of the initial Fiscal Agent, Paying Agent and Calculation Agent and its specified office are set forth below:

BNP PARIBAS
(acting through its Securities Services business)
9, rue du Débarcadère
93500 Pantin
France

The Issuer reserves the right at any time to vary or terminate the appointment of the Fiscal Agent, the Paying Agent and/or appoint additional or other agents or approve any change in the office through which any such agent acts, provided that there will at all times be a Fiscal Agent and a Paying Agent having a specified office in a European city.

In the absence of default, bad faith or manifest error, no liability to the Noteholders shall attach to the Fiscal Agent and/or the Paying Agent in connection with the exercise or non-exercise by it of its powers, duties and discretions under these Conditions.

6. **REDEMPTION AND PURCHASE**

6.1 **Redemption at Maturity**

Subject to Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*) and to the Prior Approval of the Relevant Supervisory Authority, unless previously redeemed or purchased and cancelled, the Notes will be redeemed at their Principal Amount, together with accrued interest thereon, if any, and any Arrears of Interest, on the Scheduled Maturity Date.

6.2 **Optional Redemption from the First Call Date**

The Issuer will have the right to redeem all but not some only of the Notes, subject to Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*) and to the Prior Approval of the Relevant Supervisory Authority, at any time from (and including) the First Call Date to (and including) the Reset Date, or on any Interest Payment Date falling thereafter. Such redemption will be made at the Base Call Price.

6.3 **Redemption for Tax Reasons**

- (a) The Notes may be redeemed at the Base Call Price at the option of the Issuer in whole, but not in part, at any time by giving not less than thirty (30) nor more than forty-five (45) calendar days' notice to the Fiscal Agent and, in accordance with Condition 10 (*Notices*), the Noteholders, if on the date of the next payment due under the Notes, a withholding or deduction for or on account of, any present or future taxes, duties, assessments or governmental charges of whatever nature imposed, levied, collected, withheld or assessed by or on behalf of France or any political subdivision or any authority thereof or therein having power to tax is required as a result of (i) any change in, or amendment to, the laws or regulations of France or any political subdivision of, or any authority in, or of, France having power to tax, or (ii) any change in the application or official interpretation of such laws or regulations, in each case occurring or becoming effective on or after the Issue Date of the Notes, provided that the due date for redemption shall be no earlier than the latest practicable date on which the Issuer could make such payment without withholding or deduction for French taxes (a **"Withholding Tax Event"**).
- (b) If the Issuer would on the date of the next payment due under the Notes be prevented

by French law from making payment to the Noteholders of the full amount then due and payable, notwithstanding the undertaking to pay Additional Amounts specified in Condition 7 (*Taxation*) below (a “**Gross-Up Event**”), then the Issuer shall forthwith give notice of such fact to the Fiscal Agent and, in accordance with Condition 10 (*Notices*), and the Issuer may (but shall not be required to) forthwith redeem all, but not some only, of the Notes then outstanding, at the Base Call Price, upon giving not less than seven (7) nor more than thirty (30) calendar days’ notice to the Noteholders in accordance with Condition 10 (*Notices*), provided that the due date for redemption of which notice hereunder shall be given, shall be no earlier than the latest practicable date on which the Issuer could make payment without withholding or deduction for French taxes, or if such date is past, as soon as is practicable thereafter.

- (c) The Notes may be redeemed at the option of the Issuer in whole, but not in part, at the Base Call Price, at any time by giving not less than thirty (30) nor more than forty-five (45) calendar days’ notice to the Fiscal Agent and, in accordance with Condition 10 (*Notices*), the Noteholders, if on the date of the next payment due under the Notes, the part of the interest payable by the Issuer under the Notes that is tax-deductible is reduced (a “**Tax Deductibility Event**”) as a result of (i) any change in, or amendment to, the laws or regulations of France (or any law or regulation having a direct effect in France) or any political subdivision of, or any authority in, or of, France having power to tax, or (ii) any change in the application or official interpretation (whether by court or any competent authority) of such laws or regulations, in each case occurring or becoming effective on or after the Issue Date, provided that the due date for redemption shall be no earlier than the latest practicable date preceding the effective date on which the part of the interest payable under the Notes that is tax-deductible is reduced. Prior to the giving of any notice of redemption pursuant to this paragraph, the Issuer shall deliver to the Fiscal Agent (x) a certificate signed by an authorised officer of the Issuer stating that the part of the interest payable under the Notes that is tax-deductible is reduced as aforesaid and that the Issuer is entitled to effect such redemption and (y) an opinion of independent legal advisers of recognised standing to such effect.

In each case subject to Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*) below and to the Prior Approval of the Relevant Supervisory Authority.

6.4 Redemption for Rating Reasons

If at any time the Issuer determines at any date after the Issue Date that a Rating Event has occurred with respect to the Notes, the Issuer may, having given not less than fifteen (15) nor more than thirty (30) calendar days’ notice to the Noteholders in accordance with Condition 10 (*Notices*), at any time, subject to Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*) and to the Prior Approval of the Relevant Supervisory Authority, elect to redeem all, but not some only, of the Notes at the Base Call Price.

6.5 Redemption for Regulatory Reasons

If at any time the Issuer determines at any date after the Issue Date that a Capital Disqualification Event has occurred with respect to the Notes, the Issuer may, having given not less than fifteen (15) nor more than thirty (30) calendar days’ notice to the Noteholders in accordance with Condition 10 (*Notices*), at any time, subject to Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*) and to the Prior Approval of the Relevant Supervisory Authority, elect to redeem all, but not some only, of the Notes at the Base Call Price.

6.6 Redemption for Accounting Reasons

If at any time the Issuer determines at any date after the Issue Date that an Accounting Event has occurred with respect to the Notes, the Issuer may, having given not less than fifteen (15) nor more than thirty (30) calendar days' notice to the Noteholders in accordance with Condition 10 (*Notices*), at any time, subject to Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*) and to the Prior Approval of the Relevant Supervisory Authority, elect to redeem all, but not some only, of the Notes at the Base Call Price.

6.7 Clean-up Redemption

The Issuer may, subject to Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*) and to the Prior Approval of the Relevant Supervisory Authority, elect to redeem all, but not some only, of the Notes at any time after the Issue Date at their Base Call Price if 75 per cent. or more of the Notes issued (including any further issues pursuant to Condition 13 (*Further Issues*)) has been purchased and cancelled at the time of such election (a “**Clean-up Call**”).

6.8 Purchases

Subject to Condition 6.10 (*Conditions to Redemption, Purchase and Replacement*) and to the Prior Approval of the Relevant Supervisory Authority, the Issuer, any of its subsidiary of the Issuer and/or any member of the Group may at any time purchase Notes in the open market or otherwise, at any price and on any conditions, in accordance with any applicable laws and regulations. All Notes so purchased by the Issuer may be (i) held and resold or (ii) cancelled, in each case in accordance with applicable laws and regulations.

6.9 Cancellation

All Notes which are redeemed or purchased for cancellation by the Issuer, any of its subsidiary of the Issuer and/or any member of the Group shall be cancelled. Any Notes so cancelled may not be reissued or resold and the obligations of the Issuer in respect of any such Notes shall be discharged.

6.10 Conditions to Redemption, Purchase and Replacement

The Notes may not be redeemed, purchased, or replaced pursuant to any of the redemption, purchase or replacement provisions referred to in these Conditions if:

- (i) a Regulatory Deficiency has occurred and is continuing on the Redemption Date (or such redemption or purchase would itself cause a Regulatory Deficiency), except if (a) the Relevant Supervisory Authority has exceptionally waived the suspension of redemption, purchase or replacement, (b) the Notes have been exchanged for or converted into another basic own fund item of at least the same quality and (c) the Minimum Capital Requirement is complied with after the redemption or purchase; or
- (ii) an Insolvent Insurance Affiliate Winding-up has occurred and is continuing on the date due for redemption, purchase or replacement (to the extent required under the Applicable Supervisory Regulations in order for the Notes to be treated under the Applicable Supervisory Regulations as at least “tier 2” own funds regulatory capital (or, if different, whatever terminology employed by the then Applicable Supervisory Regulations) of the Issuer and/or the Group except to the extent permitted under the Applicable Supervisory Regulations and with the Prior Approval of the Relevant

Supervisory Authority,

(together, the “**Conditions to Redemption, Purchase and Replacement**”).

Notwithstanding any other provision herein, the Notes may only be redeemed or purchased to the extent permitted under, and in accordance with, the Applicable Supervisory Regulations.

Should a Regulatory Deficiency or an Insolvent Insurance Affiliate Winding-up occur after a notice for redemption has been given to the Noteholders, such redemption notice shall become automatically void and notice of such fact shall be given promptly by the Issuer in accordance with Condition 10 (*Notices*). This notice will not be a condition to the deferral or cancellation of redemption. Any delay or failure by the Issuer to give such notice shall not affect the deferral or cancellation described above.

In addition, and if required pursuant to the Applicable Supervisory Regulations:

- (i) the Notes may not be purchased or redeemed upon (A) the occurrence of a Rating Event, an Accounting Event or if the conditions for a Clean-up Call are met, prior to the fifth (5th) anniversary of the Issue Date or, if applicable, the issue date of the last tranche of any Further Notes (whichever is the later), or, (B) where no Redemption Alignment Event has occurred upon a Withholding Tax Event or a Gross-Up Event prior to the tenth (10th) anniversary of the Issue Date or, if applicable, the issue date of the last tranche of any Further Notes (whichever is the later), unless the redemption or purchase has been funded out of the proceeds of a new issuance of own funds capital of the same or higher quality as the Notes;
- (ii) the Notes may not be redeemed or purchased upon the occurrence of a Capital Disqualification Event prior to the fifth (5th) anniversary of the Issue Date or, if applicable, the issue date of the last tranche of any Further Notes (whichever is the later), unless (a) (x) the Relevant Supervisory Authority has confirmed to the Issuer that it is satisfied that the Solvency Capital Requirement of the Issuer and the Group is exceeded by an appropriate margin (taking into account the solvency position of the Issuer and the Group including the Issuer’s and the Group’s medium-term capital management plan) and (y) the Issuer demonstrates to the satisfaction of the Relevant Supervisory Authority that the Capital Disqualification Event was not reasonably foreseeable at the time of the issuance of the Notes and (z) the Relevant Supervisory Authority considers such change in the regulatory classification of the Notes to be sufficiently certain and/or (b) the redemption or purchase has been funded out of the proceeds of a new issuance of own funds capital of the same or higher quality as the Notes; and
- (iii) the Notes may not be redeemed or purchased upon the occurrence of a Tax Deductibility Event, or, if a Redemption Alignment Event has occurred, a Withholding Tax Event or a Gross-Up Event prior to the fifth (5th) anniversary of the Issue Date or, if applicable, the issue date of the last tranche of any Further Notes (whichever is the later), unless (a) (x) the Relevant Supervisory Authority has confirmed to the Issuer that it is satisfied that the Solvency Capital Requirement of the Issuer and the Group is exceeded by an appropriate margin (taking into account the solvency position of the Issuer including the Issuer’s and the Group’s medium-term capital plan) and (y) Issuer demonstrates to the satisfaction of the Relevant Supervisory Authority that the Tax Deductibility Event, the Withholding Tax Event or, as the case may be, the Gross-Up Event is material and was not reasonably foreseeable at the time of the issuance of the Notes and/or (b) the redemption or purchase has been funded out of the proceeds of a new issuance of own funds capital of the same or higher quality as the Notes.

In addition and in each case, the Issuer may waive, at any time and in its sole discretion, its right to redeem the Notes under any of Conditions 6.2 (*Optional Redemption from the First Call Date*), 6.3 (*Redemption for Tax Reasons*), 6.4 (*Redemption for Rating Reasons*), 6.5 (*Redemption for Regulatory Reasons*), 6.6 (*Redemption for Accounting Reasons*) and/or 6.7 (*Clean-up Redemption*) for a (definite or indefinite) period(s) of time to be determined by the Issuer (an **“Inapplicability Period”**) by notice to the Noteholders in accordance with Condition 10 (*Notices*). Any notice so given shall specify the Inapplicability Period(s) during which the Issuer shall cease to have the right to redeem the Notes under any of Conditions 6.2 (*Optional Redemption from the First Call Date*), 6.3 (*Redemption for Tax Reasons*), 6.4 (*Redemption for Rating Reasons*), 6.5 (*Redemption for Regulatory Reasons*), 6.6 (*Redemption for Accounting Reasons*) and/or 6.7 (*Clean-up Redemption*). Any ongoing Inapplicability Period may be terminated by the Issuer at any time and in its sole discretion by notice to the Noteholders in accordance with Condition 10 (*Notices*).

A **“Redemption Alignment Event”** will be deemed to have occurred if at any time, the Issuer determines, in consultation with the Relevant Supervisory Authority (if required pursuant to the Applicable Supervisory Regulations), that the option to redeem or purchase the Notes upon the occurrence of Withholding Tax Event or a Gross-Up Event from the fifth (5th) anniversary of the Issue Date or, if applicable, the issue date of the last tranche of any Further Notes (whichever is the later), without such redemption or purchase being funded out of the proceeds of a new issuance of own funds capital of the same or higher quality as the Notes would not cause the Notes to no longer be treated under the Applicable Supervisory Regulations as at least “tier 2” own funds regulatory capital (or, if different, whatever terminology employed by the then Applicable Supervisory Regulations) and gives not less than thirty (30) nor more than forty-five (45) calendar days’ notice of such fact to the Fiscal Agent and, in accordance with Condition 10 (*Notices*), the Noteholders.

Except as otherwise indicated above, any redemption, purchase or replacement shall have been notified by the Issuer having given not more than sixty (60) nor less than thirty (30) calendar day's prior notice to the Noteholders (which notice shall be irrevocable and shall specify the date fixed for redemption).

7. TAXATION

All payments of principal, interest and other assimilated revenues by or on behalf of the Issuer in respect of the Notes shall be made free and clear of, and without withholding or deduction for or on account of, any present or future taxes, duties, assessments or governmental charges of whatever nature imposed, levied, collected, withheld or assessed by or on behalf of France or any political subdivision or any authority thereof or therein having power to tax unless such withholding or deduction is required by law.

If French law should require any such withholding or deduction and provided a Tax Alignment Event has occurred and is continuing, the Issuer shall, to the extent permitted by law, pay such additional amounts as may be necessary so that each Noteholder, after such withholding or deduction (**“Additional Amounts”**), will receive the full amount then due and payable on each Note in the absence of such withholding or deduction, except that no such Additional Amounts shall be payable with respect to any Note, as the case may be:

- (i) to, or to a third party on behalf of, a Noteholder who is liable to such taxes, duties, assessments or governmental charges in respect of such Note, by reason of his having some connection with France other than the mere holding of the Note; or
- (ii) to, or to a person acting on behalf of, a beneficiary who is liable to such taxes

in respect of such Notes, solely by reason of (x) his being a shareholder of the Issuer who declared or notified, or is under an obligation to declare or notify his shareholding in the Issuer to the *Autorité des marchés financiers* or the Issuer, under applicable law or the bylaws (*statuts*) of the Issuer and (y) the payment of interest or any payment being made to him at a rate in excess of the limit set forth in the French *Code général des impôts* (Article 39, 1, 3°) for the deduction of interest paid to shareholders of a borrowing company; or

- (iii) where such Additional Amount is due prior to the fifth (5th) anniversary of the Issue Date; or
- (iv) where such Additional Amount is due on or after the fifth (5th) anniversary of the Issue Date in the case where no Redemption Alignment Event has occurred.

As used herein, a “**Tax Alignment Event**” will be deemed to have occurred if at any time the Issuer determines, in consultation with the Relevant Supervisory Authority, that the obligation to pay Additional Amounts would not cause the Notes to no longer be treated under Applicable Supervisory Regulations as Tier 2 Own Funds (or, if different, whatever terminology then employed by the Applicable Supervisory Regulations and gives not less than thirty (30) nor more than forty-five (45) calendar days’ notice of such fact to the Fiscal Agent and, in accordance with Condition 10 (*Notices*), the Noteholders (which notice shall be in effect until the Issuer revokes a prior given notice by giving not less than thirty (30) nor more than forty-five (45) calendar days’ notice of such fact to the Fiscal Agent and, in accordance with Condition 10 (*Notices*), the Noteholders).

8. VARIATION AND SUBSTITUTION OF THE NOTES

- (a) If a Capital Disqualification Event, a Rating Event, an Accounting Event or an event pursuant to which the Issuer has the right to redeem the Notes pursuant to Condition 6.3 (*Redemption for Tax Reasons*) occurs, the Issuer may, at any time, without any requirement for the consent or approval of the Noteholders, vary the Conditions or substitute all (and not some only) of the Notes for other Notes, so that the varied Notes or the substituted Notes, as the case may be, become Qualifying Equivalent Securities.
- (b) The principal amount of the Qualifying Equivalent Securities to be received by Noteholders in any substitution will have the same Principal Amount as the Notes prior to variation or substitution.
- (c) Any variation or substitution of the Notes is subject to its prior notification by the Issuer to the Noteholders by no more than sixty (60) nor less than thirty (30) calendar days’ prior notice (which notice shall be irrevocable and shall specify the date fixed for such variation or substitution) in accordance with Condition 10 (*Notices*) and to:
 - (i) the Issuer giving at least six (6) months’ prior written notice to, and receiving no objection from, the Relevant Supervisory Authority (or such shorter period of notice as the Relevant Supervisory Authority may accept and so long as such notice is required to be given);
 - (ii) the Issuer being in compliance with the Applicable Supervisory Regulations on the date of such variation or substitution, and such variation or substitution not resulting directly or indirectly in a breach of the Applicable Supervisory Regulations;
 - (iii) the Issuer complying with the rules of any stock exchange (or any other relevant

authority) on which the Issuer has had its Notes listed or admitted to trading, and (for so long as the rules of such exchange or relevant authority require) the publication of any appropriate supplement, listing particulars or offering circular in connection therewith;

- (iv) the issue of legal opinions addressed to the Fiscal Agent from one or more independent legal advisers of recognised standing confirming that (x) the Issuer has capacity to assume all rights and obligations under the new substituted Notes or varied Notes and has obtained all necessary corporate or governmental authorisation to assume all such rights and obligations and (y) the legality, validity and enforceability of the new exchanged Notes or varied Notes; and
- (v) the full payment on the immediately preceding Interest Payment Date (if any) of all interest amounts due on such date.

(d) **“Qualifying Equivalent Securities”** means securities which have terms not being materially less favourable to the interests of the Noteholders as determined by the senior management of the Issuer in consultation with an Independent Agent, and provided that a certification to such effect shall have been delivered by an authorised officer of the Issuer to the Fiscal Agent (including as to the consultation with the Independent Agent and in respect of the matters specified in (i) to (vi) below) for the benefit of the Noteholders prior to the variation or substitution (upon which the Fiscal Agent shall be entitled to rely without liability to any person) and which:

- (i) satisfy the criteria for the eligibility for inclusion of the proceeds of the Notes, as at least Tier 2 Capital;
- (ii) shall bear at least the same interest rate from time to time to that applying to the Notes and preserve the Interest Payment Dates;
- (iii) contain new terms providing for mandatory deferral of payments of interest or principal only if such terms are not materially less favourable to an investor than the mandatory deferral provisions, contained in Condition 4 (*Interest*) and Condition 6 (*Redemption and Purchase*);
- (iv) shall rank at least *pari passu* with the Notes;
- (v) preserve the obligations (including the obligations arising from the exercise of any right) of the Issuer as to redemption of the Notes, including (without limitation) as to timing of, and amounts payable upon such redemption;
- (vi) do not contain terms providing for loss absorption through principal write down or conversion to ordinary shares; and
- (vii) preserve any rights under the Conditions to any accrued interest and Arrears of Interest, and any existing rights to other amounts payable under the Notes which have accrued to Noteholders and not been paid.

9. EVENTS OF DEFAULT

There are no events of default in respect of the Notes. However, each Note shall become immediately due and payable at its Principal Amount, together with accrued interest thereon, if any, to the date of payment and any Arrears of Interest, in the event that an order is made or an effective resolution is passed for the liquidation (*liquidation amiable* or *liquidation judiciaire*) or the Issuer is liquidated for any other reason, in accordance with the provisions relating to the Status of the Notes, or the sale of the whole business (*cession totale de l'entreprise*) subsequent to the opening of a judicial recovery procedure of the Issuer.

10. NOTICES

Any notice to the Noteholders shall be validly given by (i) delivery of the relevant notice to Euroclear France, Euroclear or Clearstream, (ii) publication on the website of the Issuer (www.scor.com), (iii) publication on the website of the Luxembourg Stock Exchange (www.luxse.com) so long as the Notes are listed on the official list of the Luxembourg Stock Exchange and admitted to trading on the regulated market of the Luxembourg Stock Exchange if such stock exchange so require and (iv) as may be required by the mandatory rules of any exchange on which the Notes are from time to time listed and/or admitted to trading.

Any such notice shall be deemed to have been given on the date of such publication or, if published more than once or on different dates, on the first date on which such publication is made.

11. PRESCRIPTION

Claims against the Issuer for the payment of principal and interest (including, for the avoidance of doubt, any Arrears of Interest) in respect of Notes will become void unless presented for payment within a period of ten (10) years (in the case of the principal) and within five (5) years (in the case of interest) from the appropriate relevant due date for payment thereof.

12. NOTEHOLDERS' MEETING

12.1 The Masse

The Noteholders will be grouped automatically for the defence of their respective common interests in a *masse* (hereinafter referred to as the “**Masse**”).

The Masse will be governed by those provisions of the French *Code de commerce* with the exception of the provisions of Articles L.228-48, L.228-59, L.228-65 II, R.228-61, R.228-63, R.228-65, R.228-67, R.228-69, R.228-72, R.228-79 and R.236-11 of the French *Code de commerce*, as summarised and supplemented by the Conditions set forth below.

12.2 Legal Personality

The Masse will be a separate legal entity, by virtue of Article L.228-46 of the French *Code de commerce* acting in part through one (1) representative (the “**Representative**”) and in part through collective decisions of the Noteholders (the “**Collective Decisions**”).

The Masse alone, to the exclusion of all individual Noteholders, shall exercise the common rights, actions and benefits which now or in the future may accrue with respect to the Notes.

12.3 Representative

The office of Representative may be conferred on a person of any nationality. However, the

following persons may not be chosen as Representative:

- (i) the Issuer, the members of its Board of Directors, its *Directeurs Généraux*, its statutory auditors and its employees and their ascendants, descendants and spouses;
- (ii) companies possessing at least ten (10) per cent. of the share capital of the Issuer or of which the Issuer possesses at least ten (10) per cent. of the share capital;
- (iii) companies guaranteeing all or part of the obligations of the Issuer; and
- (iv) persons to whom the practice of banker is forbidden or who have been deprived of the right of directing, administering or managing a business in whatever capacity.

The initial Representative shall be:

DIIS GROUP
12, rue Vivienne
75002 Paris
France

In the event of death, incapacity, retirement or revocation of the Representative, another representative will be decided by a Collective Decision.

The initial Representative will be entitled to a remuneration of €500 per year, payable by the Issuer on each Interest Payment Date and for the first time on the Issue Date.

All interested parties will at all times have the right to obtain the name and the address of the Representative at the head office of the Issuer and at the offices of the Fiscal Agent.

12.4 Powers of the Representative

The Representative shall (in the absence of any Collective Decision to the contrary) have the power to take all acts of management to defend the common interests of the Noteholders.

All legal proceedings against the Noteholders or initiated by them in order to be justifiable must be brought against the Representative or by it, and any legal proceedings which shall not be brought in accordance with this provision shall not be legally valid.

The Representative may not interfere in the management of the affairs of the Issuer.

12.5 Collective Decisions

Collective Decisions are adopted either in a general assembly (the “**General Assembly**”) or by consent following a written consultation (including by way of electronic communication as further specified in Condition 12.8 (*Written Decision and Electronic consent*) below) (the “**Written Decision**”).

In accordance with Article R.228-71 of the French *Code de commerce*, the rights of each Noteholder to participate in Collective Decisions will be evidenced by the entries in the books of the relevant Account Holder of the name of such Noteholder as of 0:00 Paris time, on the second (2nd) business day in Paris preceding the date set for the Collective Decision.

Collective Decisions must be published in accordance with Condition 12.9 (*Notice of*

Decisions).

The Issuer shall hold a register of the Collective Decisions and shall make it available, upon request, to any subsequent holder of any of the Notes.

12.6 General Assemblies of Noteholders

General Assemblies of the Noteholders may be held at any time, on convocation either by the Issuer or by the Representative. One or more Noteholders, holding together at least one-thirtieth (1/30) of outstanding Notes may address to the Issuer and the Representative a demand for convocation of the General Assembly; if such General Assembly has not been convened within two (2) months from such demand, such Noteholders may commission one of themselves to petition the competent court in Paris to appoint an agent who will call the General Assembly.

Notice of the date, time, place, agenda and quorum requirements of any meeting of a General Assembly will be published as provided under Condition 12.9 (*Notice of Decisions*) not less than fifteen (15) calendar days prior to the date of the General Assembly on first convocation and five (5) calendar days on second convocation.

Each Noteholder has the right to participate in meetings of the Masse in person, by proxy, by correspondence or by videoconference or by any other means of telecommunication allowing the identification of participating Noteholders as provided *mutatis mutandis* by Article R.225-97 of the French *Code de commerce*. Each Note carries the right to one vote.

12.7 Powers of General Assemblies

A General Assembly is empowered to deliberate on the fixing of the remuneration of the Representative and on its dismissal and replacement, and also may act with respect to any other matter that relates to the common rights, actions and benefits which now or in the future may accrue with respect to the Notes, including authorising the Representative to act at law as plaintiff or defendant.

Meetings of a General Assembly may deliberate validly on first convocation only if Noteholders present or represented hold at least one fifth (1/5) of the Notes then outstanding. On second convocation, no quorum shall be required. Decisions at meetings shall be taken by a simple majority of votes cast by the Noteholders attending such meeting or represented thereat. The votes cast do not include those attached to Notes for which a Noteholder did not take part in the vote, abstained, voted blank or null.

12.8 Written Decision and Electronic consent

At the initiative of the Issuer or the Representative, Collective Decisions may also be taken by a Written Decision.

Such Written Decision shall be signed by or on behalf of the Noteholders holding not less than 66.67% of the Notes without having to comply with formalities and time limits referred to in Condition 12.7 (*Powers of General Assemblies*). Any such decision shall, for all purposes, have the same effect as a resolution passed at a General Assembly of such Noteholders. Such Written Decision may be contained in one document or in several documents in like form each signed by or on behalf of one or more of such Noteholders or may be given by way of electronic communication allowing the identification of Noteholders as provided *mutatis mutandis* by Article R.225-97 of the French *Code de commerce*, and shall be published in accordance with Condition 12.9 (*Notice of Decisions*).

12.9 Notice of Decisions

Any notice to be given to Noteholders in accordance with this Condition 12 (*Noteholders' Meeting*) shall be given in accordance with Condition 10 (*Notices*).

12.10 Information to the Noteholders

Each Noteholder or representative thereof will have the right, during the (15) fifteen-calendar-day period preceding the holding of each meeting of a General Assembly on first convocation, or during the (5) five-calendar-day period preceding the holding of each meeting of a General Assembly on second convocation, to consult or make a copy of the text of the resolutions which will be proposed and of the reports which will be presented at the meeting, which will be available for inspection at the principal office of the Issuer, at the offices of the Fiscal Agent and at any other place specified in the notice of meeting.

12.11 Expenses

The Issuer will pay all duly documented expenses incurred in the operation of the Masse, including expenses relating to the calling and holding of Collective Decisions and the expenses which arise by virtue of the remuneration of the Representative, and more generally all administrative expenses resolved upon by Collective Decisions, it being expressly stipulated that no expenses may be imputed against interest payable on the Notes.

13. FURTHER ISSUES

The Issuer may from time to time without the consent of the Noteholders issue further notes to be assimilated and form a single series (*assimilées*) with the Notes as regards their financial service, provided that such further notes and the Notes shall carry rights identical in all respects (or in all respects except for the first payment of interest thereon) and that the terms of such further notes shall provide for such assimilation. In the event of such assimilation, the Noteholders and the holders of any assimilated (*assimilées*) notes will for the defence of their common interests be grouped in a single Masse having legal personality.

14. WAIVER OF SET-OFF

No Noteholder may at any time exercise or claim any Set-Off Rights against any right, claim, or liability the Issuer has or may have or acquire against such Noteholder, directly or indirectly, howsoever arising (and, for the avoidance of doubt, including all such rights, claims and liabilities arising under or in relation to any and all agreements or other instruments of any sort or any non-contractual obligations, in each case whether or not relating to the Notes) and each such Noteholder shall be deemed to have waived all Set-Off Rights to the fullest extent permitted by applicable law in relation to all such actual and potential rights, claims and liabilities.

For the avoidance of doubt, nothing in this Condition 14 (*Waiver of Set-off*) is intended to provide or shall be construed as acknowledging any right of deduction, set-off, netting, compensation, retention or counterclaim or that any such right is or would be available to any Noteholder but for this Condition 14 (*Waiver of Set-off*).

For the purposes of this Condition 14 (*Waiver of Set-off*), “**Set-Off Rights**” means any and all rights of or claims of any Noteholder for deduction, set-off, netting, compensation, retention or counterclaim arising directly or indirectly under or in connection with any such Note.

15. **ACKNOWLEDGEMENT OF BAIL-IN AND WRITE-DOWN OR CONVERSION POWERS**

This Condition 15 (*Acknowledgement of Bail-In and Write-Down or Conversion Powers*) is only applicable if the Notes are in the scope of Articles 35 *et seq.* of the IRRD, as finally transposed under French law.

By the acquisition of Notes, each Noteholder (which, for the purposes of this Condition 15 (*Acknowledgement of Bail-In and Write-Down or Conversion Powers*), includes any current or future holder of a beneficial interest in the Notes) acknowledges, accepts, consents and agrees:

- (a) to be bound by the effect of the exercise of the Bail-in Power (as defined below) by the Relevant Resolution Authority (as defined below), which may include and result in any of the following, or some combination thereof:
 - (i) the reduction of all, or a portion, of the Amounts Due (as defined below), including on a permanent basis;
 - (ii) the conversion in whole or in part, of the Amounts Due into shares, other securities or other obligations of the Issuer or another person (and the issue to the Noteholder of such shares, securities or obligations), including by means of an amendment, modification or variation of the terms of the Notes, in which case the Noteholder agrees to accept in lieu of its rights under the Notes any such shares, other securities or other obligations of the Issuer or another person;
 - (iii) the cancellation of the Notes;
 - (iv) the amendment or alteration of the term of the Notes or amendment of the amount of interest payable on the Notes, or the date on which the interest becomes payable, including by suspending payment for a temporary period;
 - (v) any other tools and powers provided for in the IRRD, as finally transposed under French law; and/or
 - (vi) any specific French tools and powers pertaining to the recovery and resolution of insurance and reinsurance undertakings.
- (b) that the terms of the Notes are subject to, and may be varied, if necessary, to give effect to, the exercise of the Bail-in Power by the Relevant Resolution Authority.

For these purposes, the “**Amounts Due**” are the prevailing outstanding amount of the Notes, and any accrued and unpaid interest on the Notes that has not been previously cancelled or otherwise is no longer due.

For these purposes, the “**Bail-in Power**” is any power existing from time to time under any laws, regulations, rules or requirements relating to the recovery and resolution of insurance and reinsurance undertakings in effect in France, including but not limited to any such laws, regulations, rules or requirements that are implemented, adopted or enacted within the context of the IRRD, and in each case the instructions, rules and standards created thereunder, pursuant to which the obligations of a Regulated Entity (as defined below) (or an affiliate of such Regulated Entity) can be reduced (in whole or in part), cancelled, suspended, transferred, varied or otherwise modified in any way, or securities of a Regulated Entity (or an affiliate of such Regulated Entity) can be converted into shares, other securities, or other obligations of such Regulated Entity or any other person, whether in connection with the implementation of a bail-in power following placement in resolution or otherwise.

A reference to a **“Regulated Entity”** is to any entity which includes certain insurance and reinsurance undertakings that are established in the European Union, parent insurance and reinsurance undertakings that are established in the European Union, insurance holding companies and mixed financial holding companies that are established in the European Union, parent insurance holding companies and parent mixed financial holding companies established in a Member State, European Union parent insurance holding companies and European Union parent mixed financial holding companies, certain branches of insurance and reinsurance undertakings that are established outside the European Union according to IRRD, as finally transposed under French law, or any entity designated as such under the laws and regulations in effect or which will be in effect in France applicable to the Issuer or other members of its Group.

A reference to the **“Relevant Resolution Authority”** is to the ACPR, any insurance resolution authority as determined by the IRRD or any other authority designated as such under the laws and regulations in effect or which will be in effect in France applicable to the Issuer or other members of its Group.

No repayment or payment of the Amounts Due will become due and payable or be paid after the exercise of the Bail-in Power by the Relevant Resolution Authority with respect to the Issuer unless, at the time such repayment or payment, respectively, is scheduled to become due, such repayment or payment would be permitted to be made by the Issuer under the laws and regulations in effect in France and the European Union applicable to the Issuer or other members of its Group.

Upon the exercise of any Bail-in Power by the Relevant Resolution Authority with respect to the Notes, the Issuer will provide a written notice to the Noteholders in accordance with Condition 10 (*Notices*) as soon as practicable regarding such exercise of the Bail-in Power. The Issuer will also deliver a copy of such notice to the Fiscal Agent for informational purposes, although the Fiscal Agent shall not be required to send such notice to Noteholders. Any delay or failure by the Issuer to give notice shall not affect the validity and enforceability of the Bail-in Power nor the effects on the Notes described above.

Neither a cancellation of the Notes, a reduction, in whole or in part, of the Amounts Due, the conversion thereof into another security or obligation of the Issuer or another person, as a result of the exercise of the Bail-in Power by the Relevant Resolution Authority with respect to the Issuer, nor the exercise of any Bail-in Power by the Relevant Resolution Authority with respect to the Notes will constitute a default or an event of default or otherwise constitute non-performance of a contractual obligation, or entitle the Noteholder to any remedies (including equitable remedies) which are hereby expressly waived.

Upon the exercise of any Bail-in Power by the Relevant Resolution Authority, the Issuer and each Noteholder (including each holder of a beneficial interest in the Notes) hereby agree that (a) the Fiscal Agent shall not be required to take any directions from Noteholders, and (b) the Agency Agreement shall impose no duties upon the Fiscal Agent whatsoever, in each case with respect to the exercise of any Bail-in Power by the Relevant Resolution Authority.

Notwithstanding the foregoing, if, following the completion of the exercise of the Bail-In Power by the Relevant Resolution Authority, any Notes remain outstanding (for example, if the exercise of the Bail-In Power results in only a partial Write-Down of the principal of the Notes), then the Fiscal Agent’s duties under the Agency Agreement shall continue with respect to the remaining outstanding Notes following such completion, subject to any necessary changes to the Agency Agreement.

If the Relevant Resolution Authority exercises the Bail-in Power with respect to less than the total Amounts Due, unless the Fiscal Agent is otherwise instructed by the Issuer or the Relevant

Resolution Authority, any cancellation, write-off or conversion made in respect of the Notes pursuant to the Bail-in Power will be made on a pro-rata basis.

The matters set forth in this Condition 15 (*Acknowledgement of Bail-In and Write-Down or Conversion Powers*) shall be exhaustive on the foregoing matters to the exclusion of any other agreements, arrangements or understandings between the Issuer and any Noteholder.

No expenses necessary for the procedures under this Condition 15 (*Acknowledgement of Bail-In and Write-Down or Conversion Powers*), including, but not limited to, those incurred by the Issuer and the Fiscal Agent, shall be borne by any Noteholder.

16. GOVERNING LAW AND JURISDICTION

The Notes, and all non-contractual obligations arising out of or in connection with them, are governed by and shall be construed in accordance with the laws of the Republic of France.

Any action against the Issuer in connection with the Notes will be submitted to the exclusive jurisdiction of the competent courts in Paris.

USE AND ESTIMATED NET AMOUNT OF PROCEEDS

The estimated net proceeds of the issue of the Notes amounting to €498,500,000 will be used for general corporate purposes of the Group, including to finance the concurrent tender offer on the Issuer's outstanding €600,000,000 Fixed to Reset Rate Subordinated Notes due 8 June 2046 with a first call date on 8 June 2026 (ISIN: FR0013067196) announced by the Issuer on 2 September 2025.

DESCRIPTION OF THE ISSUER

For a general description of the Issuer, its activities and its financial condition, please refer to the Cross-Reference List set out in the section “*Documents Incorporated by Reference*” of this Prospectus.

RECENT DEVELOPMENTS

Press Releases

The Issuer has published the following press releases on 13 August 2025 and on 2 September 2025.

Press release dated 13 August 2025



Press release
13 August 2025 - N° 13

The timeline of the 2022 arbitration relating to retrocession treaties remains unchanged

In 2022, SCOR filed an arbitration seeking the execution of the retrocession treaties signed with Covéa in June 2021. At the end of July 2025, Covéa requested that the tribunal in charge of this dispute stay its proceedings and SCOR opposed this request (see our communication dated 31 July 2025 for more details).

SCOR reports that the arbitration tribunal has decided to maintain the original timeline of these proceedings, with a final decision expected during the course of 2026.

All major arbitrations and disputes in which SCOR is involved are provisioned at best estimate in SCOR's audited financial statements.

This update completes the ad hoc disclosure published on 31 July 2025 pursuant to Article 17 of Regulation (EU) No 596/2014 of 16 April 2014.

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SCOR announces the launch of a cash tender offer and its intention to issue new subordinated notes

SCOR SE (the “**Company**”) announces the launch of a cash tender offer (the “**Tender Offer**”) to purchase its EUR 600,000,000 Fixed to Reset Rate Subordinated Notes due 8 June 2046 (ISIN: FR0013067196), issued on 7 December 2015, with a first call date on 8 June 2026 (of which EUR 600,000,000 are currently outstanding) (the “**Existing Notes**”). The Existing Notes are admitted to trading on the regulated market of the Luxembourg Stock Exchange. The Tender Offer is capped at a maximum acceptance amount of EUR 500,000,000 in aggregate principal amount, such amount being subject to the right of the Company to increase or decrease it at its sole and absolute discretion.

Simultaneously, the Company announces its intention to issue, subject to market conditions, new Euro-Fixed to Floating Rate Subordinated Notes, eligible as Tier 2 regulatory capital under Solvency II (the “**New Notes**”). The net proceeds of the issue of the New Notes will be used for general corporate purposes of the Group, including to finance the Tender Offer.

The Tender Offer is conditional upon the successful completion, in the Company’s sole determination, of the issue of the New Notes.

A mechanism of priority allocation in the New Notes may be applied, at the sole and absolute discretion of the Company, for holders of the Existing Notes who participate in the Tender Offer and wish to subscribe for the New Notes.

The Tender Offer will begin on 2 September 2025 and will end on 8 September 2025 at 5:00 p.m. (Paris time). The results of the Tender Offer will be announced as soon as reasonably practicable after the expiration of the Tender Offer.

The terms and conditions of the Tender Offer are further described in the Tender Offer Memorandum dated 2 September 2025.

The Tender Offer and the intended issuance of the New Notes are part of the Company's proactive management of its financing structure.

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Share capital of the Issuer

As at 4 September 2025, the total number of fully paid-up ordinary shares of the Issuer is 179,391,847 representing an accounting share capital of EUR 1,413,064,609.66.

SUBSCRIPTION AND SALE

BNP PARIBAS, Citigroup Global Markets Europe AG, Crédit Agricole Corporate and Investment Bank, Morgan Stanley Europe SE and Natixis (the “**Joint Lead Managers**”) have, pursuant to a subscription agreement (the “**Subscription Agreement**”) dated 5 September 2025 agreed with the Issuer, subject to satisfaction of certain conditions, to subscribe or procure subscribers for the Notes at the issue price of 100 per cent. of the total principal amount of the Notes, less a management and underwriting commission agreed between the Issuer and the Joint Lead Managers. The Issuer has agreed to indemnify the Joint Lead Managers against certain liabilities, incurred in connection with the issue of the Notes. The Subscription Agreement may be terminated in certain circumstances prior to payment being made to the Issuer.

General selling restrictions

No action has been taken or will be taken by the Joint Lead Managers that would, or is intended to, permit an offering of the Notes to retail investors or the possession or distribution of this Prospectus or any other offering material in relation to the issue of the Notes in any country or jurisdiction where action for that purpose is required.

Each of the Joint Lead Managers has represented, warranted and agreed that it will comply with all laws and regulations (i) applicable to the offering, placement, underwriting, purchase or sale of the Notes or possession or distribution of the Prospectus (as supplemented and amended as the case may be) or any part of it or any other offering material relating to the Notes or (ii) otherwise relevant to the Joint Lead Managers’ duties and obligations hereunder in force in any jurisdiction in or from which it purchases, offers or sells Notes or possesses or distributes the Prospectus (as supplemented and amended as the case may be) or any part of it or any other offering material relating to the Notes, and will obtain any consent, approval or permission required by it for the purchase, offer or sale by it of Notes under the laws and regulations in force in any jurisdiction to which it is subject or in or from which it makes such purchases, offers or sales. None of the Joint Lead Managers who have complied with such representation shall have any responsibility for any breach of such representation by another Joint Lead Manager.

None of the Joint Lead Managers will offer, sell or deliver, directly or indirectly, any Notes or distribute the Prospectus or any offering material in or from any country or jurisdiction except under circumstances that will result in compliance with any applicable laws and regulations and which will not impose any obligations on the Issuer and all offers, sales and deliveries of Notes and distributions of the Prospectus or any offering materials relating to the Notes by each of the Joint Lead Managers will be made on the same terms.

Neither the Issuer nor any of the Joint Lead Managers represents that the Notes may at any time lawfully be sold in compliance with any applicable registration or other requirements in any jurisdiction, or pursuant to any exemption available thereunder, or assumes any responsibility for facilitating such sale. The distribution of this Prospectus and the offering of the Notes in certain jurisdictions may be restricted by law. Persons into whose possession this Prospectus comes are required by the Issuer and the Joint Lead Managers to inform themselves about and to observe any such restrictions. This Prospectus does not constitute, and may not be used for or in connection with, an offer or solicitation by anyone in any jurisdiction in which such offer or solicitation is not authorised or to any person to whom it is unlawful to make such offer or solicitation and no action is being taken in any jurisdiction that would permit an offering of the Notes to retail investors or the distribution of this Prospectus in any jurisdiction where action for that purpose is required.

Prohibition of Sales to European Economic Area Retail Investors

Each Joint Lead Manager has represented and agreed that it has not offered, sold or otherwise made available and will not offer, sell or otherwise make available any Notes to any retail investor in the European Economic Area.

For the purposes of this provision, the expression “**retail investor**” means a person who is one (or more) of the following:

- (i) a retail client as defined in point (11) of Article 4(1) of Directive 2014/65/EU (as amended, “**MiFID II**”); or
- (ii) a customer within the meaning of Directive 2016/97/EU, where that customer would not qualify as a professional client as defined in point (10) of Article 4(1) of MiFID II.

United States

The Notes have not been and will not be registered under U.S. Securities Act of 1933, as amended (the “**Securities Act**”) and may not be offered or sold within the United States or to, or for the account or benefit of, U.S. persons except pursuant to an exemption from, or in a certain transaction not subject to, the registration requirements of the Securities Act. Terms used in this paragraph have the meanings given to them by Regulation S under the Securities Act (“**Regulation S**”).

Each Joint Lead Manager has represented and agreed that, except in accordance with Regulation S or pursuant to an exemption from, or in a transaction not subject to, the registration requirements of the Securities Act, it will not offer or sell Notes (a) as part of their distribution at any time or (b) otherwise until forty (40) days after the commencement of the offering and the issue date of the Notes within the United States or to, or for the account or benefit of, U.S. persons. Each Joint Lead Manager has further agreed that it will send to each dealer to which it sells any Notes during the distribution compliance period a confirmation or other notice setting forth the restrictions on offers and sales of the Notes within the United States or to, or for the account or benefit of, U.S. persons. Terms used in this paragraph have the meanings given to them by Regulation S.

The Notes are being offered and sold outside of the United States to non-U.S. persons in reliance on Regulation S.

Until forty (40) days after the commencement of the offering of the Notes, an offer or sale of such Notes within the United States by any dealer (whether or not participating in the offering) may violate the registration requirements of the Securities Act if such offer or sale is made otherwise than in accordance with an available exemption from registration under the Securities Act.

United Kingdom

Prohibition of sales to UK Retail Investors

a) Each Joint Lead Manager has represented and agreed that it has not offered, sold or otherwise made available and will not offer, sell or otherwise make available any Notes which are the subject of the offering contemplated by this Prospectus in relation thereto to any retail investor in the United Kingdom. For the purposes of this provision:

- b) the expression **retail investor** means a person who is one (or both) of the following:
 - (i) a retail client, as defined in point (8) of Article 2 of Regulation (EU) No 2017/565 as it forms part of UK domestic law by virtue of the European Union (Withdrawal) Act 2018 (“**EUWA**”); or
 - (ii) a customer within the meaning of the provisions of the Financial Services and Markets Act 2000 (the “**FSMA**”) and any rules or regulations made under the FSMA to implement Directive (EU) 2016/97, where that customer would not qualify as a

professional client, as defined in point (8) of Article 2(1) of Regulation (EU) No 600/2014 as it forms part of UK domestic law by virtue of the EUWA; and

c) the expression an “**offer**” includes the communication in any form and by any means of sufficient information on the terms of the offer and the Notes to be offered so as to enable an investor to decide to purchase or subscribe for the Notes.

Other UK regulatory restrictions

Each Joint Lead Manager has represented and agreed that:

- (i) it has only communicated or caused to be communicated and will only communicate or cause to be communicated any invitation or inducement to engage in investment activity (within the meaning of section 21 of the FSMA received by it in connection with the issue or sale of any Notes in circumstances in which section 21(1) of the FSMA does not apply to the Issuer; and
- (ii) it has complied and will comply with all applicable provisions of the FSMA with respect to anything done by it in relation to the Notes in, from or otherwise involving the United Kingdom.

Singapore

Each Joint Lead Manager has acknowledged that this Prospectus has not been and will not be registered as a prospectus with the Monetary Authority of Singapore. Accordingly, each Joint Lead Manager has represented and agreed that it has not offered or sold any Notes or caused such Notes to be made the subject of an invitation for subscription or purchase and will not offer or sell such Notes or cause such Notes to be made the subject of an invitation for subscription or purchase, and has not circulated or distributed, nor will it circulate or distribute, this Prospectus or any other document or material in connection with the offer or sale, or invitation for subscription or purchase, of such Notes, whether directly or indirectly, to persons in Singapore other than (i) to an institutional investor (as defined in Section 4A of the Securities and Futures Act 2001 of Singapore, as modified or amended from time to time (the “SFA”)) pursuant to Section 274 of the SFA or (ii) to an accredited investor (as defined in Section 4A of the SFA) pursuant to and in accordance with the conditions specified in Section 275 of the SFA.

GENERAL INFORMATION

1. Application has been made to the Luxembourg Stock Exchange for the Notes to be listed on the Official List and traded on the Luxembourg Stock Exchange Regulated Market.
2. The estimate of the total expenses related to the admission of the Notes to trading is €12,200.
3. The Notes have been accepted for clearance through Euroclear France, Clearstream and Euroclear with the Common Code 317611820. The International Securities Identification Number (“ISIN”) for the Notes is FR0014012HQ0. The address of Euroclear is 1 boulevard du Roi Albert II, 1210 Brussels, Belgium, the address of Clearstream is 42 avenue John Fitzgerald Kennedy, L-1855 Luxembourg, Grand-Duchy of Luxembourg and the address of Euroclear France is 10-12, Place de la Bourse, 75002 Paris, France.
4. There has been no significant change in the financial performance and/or position of the Issuer and the Group since 30 June 2025.
5. There has been no material adverse change in the prospects of the Issuer and the Group since 31 December 2024.
6. Except as disclosed on pages 34 and 72 of this Prospectus, the Issuer is not involved in any governmental, legal or arbitration proceedings (including any such proceedings which are pending or threatened and of which the Issuer is aware) during the twelve (12) months preceding the date of approval of this Prospectus which may have, or have had in the recent past, significant effects on the financial position or profitability of the Issuer or the Group.
7. The issue of the Notes was decided by Mr. Thierry Léger, Chief Executive Officer (*Directeur général*) of the Issuer on 3 September 2025 acting pursuant to a resolution of the Board of Directors (*Conseil d'administration*) of the Issuer adopted on 6 May 2025.
8. There are, at the date of this Prospectus, no material contracts that are not entered into in the ordinary course of the Issuer's business, which could result in any member of the Issuer's Group being under an obligation or entitlement that is material to the Issuer's ability to meet its obligations to Noteholders in respect of the Notes being issued.
9. At the date of this Prospectus, there are no conflicts of interest which are material to the issue or offer of the Notes between the duties of the members of the Board of Directors and the Chief Executive Officer to the Issuer and their private interests and/or their other duties. The Joint Lead Managers are paid commissions in relation to the issue of the Notes. Any such Joint Lead Managers and its affiliates have engaged, and/or may in the future engage, in investment banking, commercial banking and other financial advisory and commercial dealings with the Issuer and its affiliates and in relation to securities issued by any entity of the Group. They have or may (a) engage in investment banking, trading or hedging activities including in activities that may include prime brokerage business, financing transactions or entry into derivative transactions, (b) act as underwriters in connection with offering of shares or other securities issued by any entity of the Group or (c) act as financial advisers to the Issuer or other companies of the Group. In the context of these transactions, some of the Joint Lead Managers have or may hold shares or other securities issued by entities of the Group. Where applicable, they have or will receive customary fees and commissions for these transactions.
10. To the knowledge of the Issuer, no person involved in the issue of the Notes has an interest material to the issue of the Notes.
11. For as long as the Notes are outstanding or, with respect to (a) and (c) below, for at least ten years, the following documents will be available on the website of the Issuer (www.scor.com):
 - (a) this Prospectus;
 - (b) the *statuts* of the Issuer; and
 - (c) each of the Documents Incorporated by Reference.

The Prospectus and the Documents Incorporated by Reference in this Prospectus will be published on the website of the Luxembourg Stock Exchange (www.luxse.com).

12. Where information in this Prospectus has been sourced from third parties, this information has been accurately reproduced and as far as the Issuer is aware and is able to ascertain from the information published by such third parties no facts have been omitted which would render the reproduced information inaccurate or misleading. The source of third-party information is identified where used.
13. The statutory auditors of the Issuer are Forvis Mazars SA (45 rue Kléber, 92300 Levallois-Perret, France) and KPMG S.A. (Tour EQHO, 2, avenue Gambetta, CS60055, 92066 Paris La Défense Cedex, France) (both entities are regulated by the *Haute Autorité de l'Audit* and duly authorised as *Commissaires aux Comptes*). Forvis Mazars SA and KPMG S.A. are registered with the *Compagnie Régionale des Commissaires aux Comptes de Versailles et du Centre* which is supervised by the *Compagnie Nationale des Commissaires aux Comptes*. They have audited and rendered unqualified audit reports on the consolidated financial statements of the Issuer for each of the fiscal years ended 31 December 2023 and 31 December 2024 and performed a review of the Issuer's unaudited interim condensed consolidated financial statements for the six months period ended 30 June 2025. Without qualifying the conclusion expressed in their audit report on the consolidated financial statements of the Issuer for the fiscal year ended 31 December 2023, the statutory auditors of the Issuer have drawn the attention to the change in accounting method resulting from the application from 1 January 2023 of IFRS 17 "Insurance Contracts" as described in note 4.6.1.3 "IFRS standards applicable for the first time and IFRS standards published but not yet effective" to such consolidated financial statements and in the other notes to such consolidated financial statements presenting quantified data relating to the impact of these changes.
14. The yield of the Notes, calculated from the Issue Date to the Reset Date on the basis of the Issue Price is 4.522 per cent. *per annum*. It is not an indication of future yield.
15. The Notes have been rated A- by S&P Global Ratings Europe Limited ("**S&P**"). As defined by S&P, Notes rated "A" are more susceptible to the adverse effects of changes in circumstances and economic conditions than obligations in higher-rated categories. However, the Issuer's capacity to meet its financial commitments on the Notes is still strong. The minus (-) sign shows relative standing within the rating category.¹
16. Other than in relation to the documents incorporated by reference, the information on the websites to which this Prospectus refers does not form part of this Prospectus and has not been scrutinised or approved by the CSSF.
17. Amounts payable under the Notes in respect of each Floating Interest Period are calculated by reference to EURIBOR which is provided by the European Money Markets Institute ("**EMMI**"). As at the date of this Prospectus, the EMMI appears on the register of administrators and benchmarks established and maintained by the European Securities and Markets Authority pursuant to Article 36 of the Benchmarks Regulation.
18. The Issuer's Legal Entity Identifier (LEI) is: 96950056ULJ4JI7V3752.

¹ Information reproduced from S&P's website (<https://disclosure.spglobal.com/ratings/en/regulatory/article/-/view/sourceId/504352>).

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